

The Mines Rules, 1955

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Union of India - Act

The Mines Rules, 1955

UNION OF INDIA

India

The Mines Rules, 1955

Rule THE-MINES-RULES-1955 of 1955

Published on 2 July 1955

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The Mines Rules, 1955

Published vide Notification S.R.O. 1421, dated 2.7.1955, published in the Gazette of India, Extraordinary, Part 2, Section 3 page 1172.

16.

/745

S.R.O. 1421, dated 2nd July, 1955. - In exercise of the powers conferred by section 58 of the Mines Act, 1952 (35 of 1952

), the Central Government hereby makes the following rules the same having been previously published as required by sub-section (1) of section 59 of the said Act, namely:-

Chapter I

Preliminary

1.

Short title and application

-(1) These rules may be called The Mines Rules, 1955.

(2)

Except as otherwise expressly provided, the rules shall apply to every mine of whatever description to which the Act applies.

2.

Definitions

.-In these rules, unless there is anything repugnant in the subject or context,-

(a)

"the Act" means the Mines Act, 1952 (35 of 1952

);

(b)

"Court of inquiry" means a Court of inquiry appointed under section 24 of the Act;

(c)

"form" means a form as given in the First Schedule;

(d)

"section" means a section of the Act;

(e)

"Schedule" means a Schedule appended to these rules;

(f)

"manager" includes Mine Superintendent who is appointed by the owner or agent of mine under section 17 of the Act and as such, responsible for the control, management, [supervision]

[Inserted by G.S.R. 1886, dated 14.12.1965.]

and direction of a mine;

(g)

"certifying surgeon" means a qualified medical practitioner appointed to be a certifying surgeon under section 11;

(h)

[]

[Clause (h) omitted and Clause (i) relettered as Clause (h) by G.S.R. 1886, dated 14.12.1965.]

"calendar year" means a year from the first day of January to the thirty-first day of December;

(i)

["officer-in-charge canteen" means the person (other than the manager) whom the owner or agent may appoint for securing compliance with the provisions in respect of canteens;]

[Inserted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

[[()]]

[Inserted by G.S.R. 1886, dated 14.12.1965.]

["ordinarily employed" with reference to any mine or part thereof, means the average number of persons employed per day in the mine or part of mine during the preceding]

[Inserted by G.S.R. 1886, dated 14.12.1965.]

[calendar year]

[Substituted by G.S.R. 1786, dated 30.9.1970.]

[(obtained by dividing the number of man days worked by the number of working days excluding rest days and other non-working days).]

[Inserted by G.S.R. 1886, dated 14.12.1965.]

Chapter II

[Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

3.

[Term of office

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

.-The terms of office of the members referred to in clauses (c), (d) and (e) of sub-section (1) of section 12 of the Act, shall be three years from the date on which their appointment is notified in the Official Gazette:

Provided that member shall, notwithstanding the expiry of a period of three years, continue to hold office until the appointment of his successor is notified in the Official Gazette:

Provided further that a member appointed to fill a casual vacancy shall hold office for the remaining period of the term of office of the member in whose place he is appointed and shall continue to hold office on the expiry of the term of office until the appointment of his successor is notified in the Official Gazette.]

4.

[Secretary of the Committee

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

.-An Inspector of Mines nominated in this behalf by the Chief Inspector shall act as the Secretary to the Committee.

5.

Remuneration

.-Members of the Committee shall receive such honorarium as the Central Government may fix.]

6.

[* * *]

[Rule 6 omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

7.

Resignation

.-(1) A member other than the Chairman may resign his office by writing under his hand addressed to the Chairman.

(2)

The Chairman may resign his office by writing under his hand addressed to the Central Government.

(3)

The resignation referred to in sub-rule (1) or sub-rule (2) above shall take effect from the date of its acceptance [or on the expiry of thirty days from the date of receipt of such resignation, whichever is earlier]

[Inserted by S.R.O. 2062, dated 14.6.1957.]

by the Chairman or the Central Government, as the case may be.

8.

Absence from India

.-(1) Before a member leaves India-

(a)

he shall intimate to the Chairman the date of his departure from and the date of his expected return to India;

(b)

if he intends to be absent from India for a period longer than six months, he shall tender his resignation.

(2)

If any member leaves India without taking the action required by sub-rule (1), he shall be deemed to have resigned with effect from the date of his departure from India.

9.

Notification of vacancies

.-(1) The Chairman shall inform the Central Government as soon as a vacancy occurs in the membership of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

by the resignation or death of a member.

(2)

In case such a vacancy occurs by the death of the Chairman, information shall be furnished to the Central Government by the Chief Inspector or the Inspector [appointed]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

to the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

by the Central Government as the case may be.

10.

Disposal of business

-(1) All questions which the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

is required to consider shall be considered either at its meetings or by circulation of papers as the Chairman may direct: Provided that papers need not be circulated to any member who is absent from India at the time.

(2)

When a question is referred by circulation of papers, any member may request that the question be considered at a meeting of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

, and thereupon, the Chairman may direct that it be so considered:

Provided that if three or more members make such a request, the Chairman shall direct that it be so considered.

11.

Time and place of meetings

.-The [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall meet at such places and times as may be appointed by the Chairman.

12.

Notice of meetings

-(1) The Secretary to the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall give at least fourteen days' notice to every member of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

present in India of the time and place fixed for each meeting and shall send to every such member agenda of business to be disposed of at that meeting not less than seven days before the meeting:

Provided that when an emergent meeting is called, at least two days' clear notice shall be given.

[* * *]

[Sub-Rule (1-A) omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

(2)

[Notices referred to in sub-rule (1) shall be delivered at or posted to, the usual place of residence of the member.]

[Inserted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

(3)

□

[Sub-Rule (2) renumbered as Sub-Rule (3) thereof by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

No business which is not on the agenda shall be considered at a meeting without the permission of the Chairman.

13.

Presiding at meetings

.-The Chairman shall preside at every meeting of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

at which he is present. If the Chairman is absent from any meeting, the members present shall elect one of them to preside over the meeting and the member so elected shall at that meeting exercise all the powers of the Chairman.

14.

Quorum

.-No business shall be transacted at a meeting of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

unless atleast [four members including the Chairman]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

are present:

Provided that at any meeting in which less than [four members including the Chairman]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

are present, the Chairman may adjourn the meeting to a date not less than fourteen days later and inform the members

present and notify other members that he proposes to dispose of the business at the adjourned meeting irrespective of the quorum, and it shall, thereupon, be lawful to dispose of the business at such adjourned meeting irrespective of the number of members attending.

15.

Decision by majority

-(1) Every question referred to the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

by circulation of papers shall, unless the Chairman, in pursuance of sub-rule (2) of rule 10 reserves it for consideration at a meeting, be decided in accordance with the opinions of the majority sending their opinions within the time allowed.

(2)

All questions referred to a meeting of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall be decided by a majority of votes of the members present and voting on that question.

(3)

In the case of an equal division of votes, or opinions, the Chairman shall exercise an additional vote or opinion.

(4)

Any member disagreeing with a decision of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

may enter a note of dissent which shall form part of the record of the proceedings.

16. Minutes of the meetings

-(1) The Secretary of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall circulate the proceedings of each meeting to all members of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

, present in India, and thereafter record the proceedings in a minute book which shall be kept for permanent record.

(2)

The record of the proceedings of each meeting shall be signed by the Chairman.

17.

Allowances to non-official members

.-Travelling and daily allowance to non-official members of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall be regulated in accordance with the orders regarding allowances to non-official members of Committees, Commissions and [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

of Enquiry issued by the Central Government from time to time.

18.

Correspondence and accounts

.-The Secretary of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall conduct all the correspondence of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

and keep its accounts.

19.

Appearance at hearings

.-Any appearance required to be made by a party before the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

, except for purposes of being examined as a witness, may be made either in person or by his agent duly authorised in writing, or by a legal practitioner on his behalf.

20.

Proceedings to be in camera

.-Unless the Chairman otherwise directs, the proceedings of the [Committee]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall be conducted in camera and shall be regarded as confidential in nature.

Chapter III

Court Of Inquiry

21.

Court of inquiry to be public

.-The person appointed to hold inquiry under section 24 of the Act shall hold the inquiry in public in such manner and under such conditions as the Court thinks most effectual for ascertaining the causes and circumstances of the accident or other occurrences and for enabling the Court to make the report.

22.

Recovery of expenses

.- [(1) If a Court of inquiry finds that the accident was due to any carelessness or negligence on the part of the management, the Court may direct the recovery of the expenses of such Court,]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

[including any expenses incurred with the previous sanction of the Court and any other expenses connected with the inquiry which the Court may direct as recoverable]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

[from the owner,]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

[* * *]

[Certain words omitted by G.S.R. 18, dated 24.12.1973 (w.e.f. 5.1.1974).]

[of the mine concerned, in such manner and within such time as the Court may specify.]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

(2)

[The amount directed to be recovered under sub-rule (1) may, on application by the Chief Inspector or an Inspector to the concerned authority, be recovered from the owner in the same manner as an arrear of land revenue.]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

[Explanation .-For the purposes of this sub-rule, the term "management" means the owner, agent or manager of the mine and includes all officials superior to the manager.]

[Inserted by G.S.R. 18, dated 24.12.1973 (w.e.f. 5.1.1974).]

Chapter IV

Certifying Surgeons

23.

Powers of Certifying Surgeon

.-A Certifying Surgeon may within the local limits of his jurisdiction or in respect of mines or class or description of mines assigned to him make such inspection, examination or inquiry as he thinks fit for the purpose of the Act, and it shall be the duty of the owner, agent or manager of the mines concerned to afford the Certifying Surgeon all reasonable facilities for carrying out such inspection, examination or inquiry, as the case may be.

24.

Duties of Certifying Surgeon

.- [(1) On receipt of a reference under sub-section (1) of section 43 of the Act, the Certifying Surgeon shall, after giving prior notice regarding date, time and place for medical examination and upon examining the persons sent for such examination, prepare the age and fitness certificate and deliver the same to the manager of the mine concerned after retaining a copy thereof.]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

(2)

The Certifying Surgeon shall, upon a request being made to him by the Chief Inspector or Inspector, carry out such examination and furnish him with such report as he may indicate in respect of any mine or class or description of mines in which operations involve any risk of inquiry to the health of any person or class of persons employed therein.

25.

[* * *]

[Sub-Rules (3), (4) and (5) omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

26.

[* * *]

[Sub-Rules (3), (4) and (5) omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

27.

[* * *]

[Sub-Rules (3), (4) and (5) omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

[* * *]

[Rules 25, 26 and 27 omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

[* * *]

[Rules 25, 26 and 27 omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

[* * *]

[Rules 25, 26 and 27 omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

28.

Fresh examination

-(1) If any person sent up for medical examination in pursuance of [* * *]

[The words " Section 40 or" omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

section 43 [* * *]

[Certain words omitted by G.S.R. 1886, dated 14.12.1965.]

is not certified to be fit by the Certifying Surgeon he shall, not without the permission in writing of an Inspector, be sent for another medical examination unless a period of six months has elapsed from the time when he was last sent up for medical examination.

(2)

Any certificate obtained in contravention of sub-rule (1) shall be void.

[* * *]

[Rule 29 omitted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

[Chapter IV-A]

[Inserted by G.S.R. 557(E), dated 18.11.1978.]

Medical Examination Of Persons Employed Or To Be Employed In Mines

29.

-A. Applicability of this Chapter

-.Nothing in this Chapter shall apply to persons who are employed purely on temporary or casual basis for a continuous period not exceeding six months.

29.

-B. Initial and periodical medical examinations

-.After such date or dates as the Central Government may by notification in the Official Gazette appoint in this behalf, the owner, agent or manager of every mine shall make arrangements-

(a)

(i)

for the initial medical examination of every person employed in the mine, within a period of five years of the date so notified and the said examination shall be so arranged over a period of five years that one-fifth of the persons employed at the mine undergo the examination every year:

Provided that in the case of a mine where a system of carrying out of such medical examination (of a comparable standard as determined by the Chief Inspector) is already in existence before the date aforesaid, a person who has undergone a medical examination under such a system on a date not earlier than five years before the date aforesaid, shall be deemed to have undergone an initial medical examination under this sub-clause and the last date of his medical examination under the said system shall be taken to be the date of his initial medical examination under these rules;

(ii)

for the initial medical examination of every person seeking employment in a mine, unless such person has already undergone, within the preceding five years, a medical examination under these rules while in employment at another mine; and

(b)

for the periodical medical examination thereafter of every person employed in the mine at intervals of not more than five years:

[Provided that, for the persons who are engaged in the process of mining or milling of asbestos ore, periodic medical examination shall be done at least once in every twelve months and every such examination shall include all the tests specified in Form "P" of the First Schedule except the X-ray examination, which shall be carried out once in every three years:

Provided further that the periodic medical examination or the X-ray examination or both, shall be conducted at more frequent intervals if the examining authority deems it necessary to confirm a suspected case of dust-related disease.]

[Inserted by G.S.R. 707(E), dated 21.7.1989.]

29.

-C. Examining authorities

.-The medical examination aforesaid shall be carried out by a Medical Officer appointed for the mine or a Medical Officer in the employment of the owner of the mine, if any, or by any Medical Officer employed in the Coal Mines Welfare Fund Organisation or any other mines welfare organisation, failing which by any State or Central Government medical officer not below the rank of an Assistant Civil Surgeon.

29.

-D. Notice of medical examination

.- (1) In respect of every medical examination under rule 29-B, the manager of the mine concerned shall give at least twenty days' prior notice in writing to the person to be examined, in Form M, provided that in case of the initial medical examination of a person seeking employment at a mine, the period of notice may be shorter.

(2)

A copy of every such notice issued shall be sent by the manager to the examining authority and in the case of periodical medical examination of a person, the copies of the previous medical certificate issued in Form O, pertaining to the persons concerned shall also be sent to the examining authority by the manager.

(3)

A person, who for any reasonable cause, fails to submit himself for a medical examination in accordance with the notice issued to him under sub-rule (1), shall be given a second notice of a minimum period of ten days in Form N, by the manager and a copy of every such notice shall be sent by the manager to the examining authority.

(4)

The examining authority shall inform the manager whether the person concerned has submitted himself for medical examination or not.

29.

-E. Failure to undergo medical examination

.-A person who, without reasonable cause, fails to submit himself for medical examination in accordance with a notice issued to him under sub-rule (3) of rule 29-D, shall be liable to be discharged from service:

Provided that a person who renders himself so liable to be discharged for failure to submit himself for medical examination shall be required to show cause why he could not comply with the notice within the time specified therein. If his explanation is found satisfactory by the management, he shall be given another chance to appear for medical examination. In case his explanation is not found satisfactory by the management, his service shall be terminated by the management:

Provided further that in case of any dispute, the same shall be referred to the Chief Inspector for his decision within 60 days of the order communicated by the owner, agent or manager of the mine to the said person.

29.

-F. Standard and report of medical examination

.- (1) The examining authority holding initial medical examination under sub-clause (i) of clause (a), or periodical medical examination under clause (b) of rule 29-B shall examine a person according to the standard laid down in Form P and the initial medical examination under sub-clause (ii) of clause (a) of rule 29-B of all persons seeking employment in a mine shall be according to the standard laid down in Form P-I.

(2)

As soon as may be, after examination, a copy of the medical certificate in Form O, shall be issued by the examining

authority to the person concerned by registered post or delivered under receipt and another copy sent to the manager of the mine concerned by registered post, or delivered under receipt.

(3)

The examining authority shall retain the third copy of the medical certificate.

(4)

In the case of periodical medical examination of a person, the examining authority shall also send the copy of the previous medical certificate of the person concerned received in pursuance of sub-rule (1) of rule 29-D to the manager of the mine concerned.

29.

-G. Retention and transfer of medical certificates

-(1) All medical certificates [including all medical examination records with medical history and job details to depict the occupational dust exposure profiles,]

[Inserted by G.S.R. 707(E), dated 21.7.1989.]

of persons employed or to be employed in a mine shall be retained in the possession of the manager of the mine so long as the person is employed in the mine and for a period of [ten years]

[Substituted by G.S.R. 707(E), dated 21.7.1989.]

thereafter:

Provided that the manager of a mine where such person is or was employed shall, if so requested by the manager of any other mine where the person is to be employed, send to him all medical certificates with respect to such person.

(2)

If the examining authority who conducts medical examination of persons employed or to be employed in any mine, is relieved of his duties regarding medical examination, the medical practitioner shall transfer all records on medical examination in his possession to the manager of the mine concerned.

29.

-H. Identity of candidates

-(1) Every candidate for medical examination under clause (a) of rule 29-B shall, at the time of examination hand-over three unmounted photographs (passport size) of himself to the examining authority. The examining authority, after satisfying itself that each photograph is a likeness of the candidate, shall endorse each of them with the name and father's name or husband's name of the candidate.

(2)

The examining authority, shall also record the left hand thumb-impression or the signature of every candidate appearing before it for medical examination on the copies of the medical certificate in Form O.

29.

-I. Medical examination of women

.-No woman shall, without her consent, be medically examined by a male medical practitioner except in the presence of another woman.

29.

-J. Appeal for re-examination

-(1) Where as a result of an initial medical examination under clause (a), or of a periodical medical examination under clause (b) of rule 29-B, a person has been declared unfit for employment in mines or in a particular category of mine or in any specified operations in mine, he may, within thirty days of the receipt by him of a copy of the Certificate referred to in sub-rule (2) of rule 29-F, file an appeal with the manager of the mine against declaration aforesaid, and request for a medical re-examination by an Appellate Medical Board constituted under rule 29-K.

(2)

(a)

The manager shall arrange to have the appellant medically re-examined by the Appellate Medical Board within thirty days of the receipt of the appeal and shall give to the Appellant fifteen days' prior notice of the medical re-examination by the Appellate Medical Board in Form Q.

(b)

A person who, for any reasonable cause, fails to submit himself for a medical re-examination in accordance with the notice given to him under clause (a), shall be given another notice in Form R in similar manner.

(c)

A person who, without reasonable cause, fails to submit himself for a medical re-examination in accordance with a notice given to him under clause (b) shall cease to be in employment at the time or in a particular category of mines or in any specified operations in mine, as the case may be, after the expiry of thirty days from the last date notified for his medical re-examination.

(3)

In respect of every medical re-examination by the Appellate Medical Board, the appellant shall pay such fees and the medical examination shall be conducted in such manner as may be determined by the Appellate Medical Board. In case the Appellate Medical Board finds him fit for employment in mines, the fees shall be reimbursed in full to the appellant by the owner of the mine where he is employed.

29.

-K. Constitution of Appellate Medical Board

.-For the purpose of medical re-examination on appeal the Appellate Medical Board shall consist of the following officers, namely:-

(a)

One duly qualified Medical Officer in the employment of the Directorate General of Mines Safety who shall also act as the Convenor of the Board.

(b)

One Medical Officer duly qualified in allopathic system of medicine to be nominated by the Chief Inspector in consultation with the Welfare Organisation set up by the Central Government for the persons employed in the mine.

(c)

One Medical Officer duly qualified in allopathic system of medicine employed in the State or Central Government or a Government Undertaking and not below the rank of Assistant Civil Surgeon:

Provided that if a Medical Officer under clause (b) or clause (c) is not available, the Appellate Medical Board shall be constituted with two persons only.

29.

-L. Standard and report of medical re-examination by the Appellate Medical Board

.-The Appellate Medical Board shall medically examine the appellant in accordance with the standard laid down in Form P for initial medical examination of workers already in employment as well as periodical medical examination and in accordance with the standard laid down in Form PI for initial medical examination of the persons to be employed and shall issue to the manager of the mine concerned and to the appellant a medical certificate in Form S.

29.

-M. Unfit persons not to be employed

.- (1) Where, as a result of an initial medical examination made under clause (a), or of a periodical medical examination under clause (b) of rule 29-B a person has been declared unfit for employment in mines or in a particular category of mines or in any specified operations in mines, he shall not be employed or continue to be employed in mines or in the category of mine or on the operations specified, after the expiry of thirty days from the date of his medical examination unless he has filed an appeal under sub-rule (1) of rule 29-J against the declaration.

(2)

Where the person concerned has filed an appeal under sub-rule (1) of rule 29-J, but has been declared by the Appellate Medical Board, after a medical re-examination, to be unfit for employment in mines or in a particular category of mines or on any specified operations in mines, he shall not be employed or continue to be employed in mine or in the category of mines or on the operations specified, after the expiry of thirty days from the date of his medical re-examination by the Appellate Medical Board:

Provided that, if the Medical Officer carrying out the initial medical examination under clause (a), or the periodical examination under clause (b) of rule 29-B, or the Appellate Medical Board carrying out the medical re-examination of persons already in employment is of the opinion that the disability of the person examined is of such a nature and degree that it will not seriously affect or interfere with the normal discharge of his duties, it may recommend his continuation in employment in the mine for a period not exceeding six months during which such person may get his disability cured or controlled and submit himself for another medical examination and be declared fit.

29.

-N. Compensation for industrial disease

.-If, as a result of any medical examination under these rules or under the regulations, a person is found to have contracted any disease specified in Part C of Schedule III to the Workmen's Compensation Act, 1923 (

8 of 1923

), the provision of section 3 of the Act shall become applicable in respect of that person.

29.

-O. Cost of medical examination

.-Subject to the provisions of sub-rule (3) of rule 29-J full cost of every medical examination under these rules, shall be borne by the owner of the mine concerned.

29.

-P. Annual returns

.- (1) On or before the 20th day of February every year, the manager of every mine shall submit to the Chief Inspector annual returns in respect of the preceding calendar year in Form T.

(2)

If a mine is abandoned or working thereof is discontinued over a period exceeding sixty days or if a change occurs in the ownership of a mine, the returns required under sub-rule (1) shall be submitted within thirty days of abandonment or change of ownership or within ninety days of discontinuance, as the case may be.

[Chapter IV-B]

[Inserted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

Workmen's Inspector And Safety Committee

29.

-Q. Workmen's Inspector

.- (1)(a) For every mine wherein 500 or more persons are ordinarily employed, the owner, agent or manager shall designate three suitably qualified employees of the mine in consultation with the registered trade union in the mine and where there are more than one registered trade unions, the union recognised as per procedure in practice or the most representative union as per the membership records available at that point of time and if there are no registered trade unions, in consultation with the elected representative of the workmen, as technical experts, to carry out inspection of the mine on behalf of the workers employed therein, one each for mining operations, electrical installations and mechanical installations. When the number of persons employed in a mine exceeds 1500, the workmen's inspector shall be assisted by one additional workmen's inspector in mining discipline for every additional 1000 persons or part thereof.

(b)

In every mine, the owner, agent or manager shall constitute, in the manner laid down in clause (a), a panel of workmen's inspectors who may serve as substitute during absence of regular workmen's inspectors.

(c)

In the panel there shall be at least one workmen's inspector each for mining, electrical and mechanical installations and operations.

(2)

No person shall act as a workmen's inspector of a mine unless,-

(a)

he possesses an Over men's or Foreman's Certificate granted under the Act:

Provided that-

(i)

in relation to electrical machinery installed in mines a person holding a valid Electrical Supervisor's Certificate of Competency covering mining installations, issued under sub-rule (1) of rule 45 read with clause (ii) of sub-rule (1) of rule 131 of the Indian Electricity Rules, 1956 framed under the Indian Electricity Act, 1910 shall be so designated; and

(ii)

in relation to other machinery and mechanical appliances installed in mines a person appointed to secure the installation running and maintenance in safe working order of machinery in the mine, being not less in status than that of an Overman, Mine Foreman or Electrical Supervisor shall be so designated.

(b)

he has at least five years of experience in mines including at least two years in workings of the mines for which he is

nominated; and

(c)

he has undergone an orientation training course for workmen's inspector consisting of not less than thirty lectures and demonstrations, of not less than two hours' duration each, in accordance with the syllabus specified by and at a centre approved by the Chief Inspector by a general or special order.

(3)

The workmen's inspector shall perform the duties mentioned in clause (a) of sub-rule (1) of rule 29-R for two days in every week; on remaining days of the week, he shall perform his normal duties unless called upon to perform the duties mentioned in clauses (b) and (c) of sub-rule (1) of rule 29-R.

(4)

(a)

The owner, agent or manager shall afford the workmen's inspector all reasonable facilities for making any entry, inspection, measurement, examination or inquiry in connection with his duties.

(b)

An official of the mine shall accompany the workmen's inspector during his inspection.

(c)

The workmen's inspector may carry out his inspections at any time.

(5)

When there occurs an accident or dangerous occurrence in or about a mine, the owner, agent or manager shall forthwith inform the concerned workmen's inspector about the accident or the occurrence.

(6)

The workmen's inspector shall not exercise his powers to impede or obstruct the working of the mine.

(7)

A workmen's inspector nominated under sub-rule (1) shall unless resigns from his office hold office for a period of three years from the date of his nomination and shall be eligible for one renomination.

(8)

No owner, agent or manager shall take any action against a workmen's inspector for any of his actions in the discharge of his duties and functions laid down in these rules.

29.

-R. Duties of workmen's inspector

-(1) The duties of the workmen's inspector shall be-

(a)

to inspect all shafts, inclines, roads, workplaces and the equipment threat including the equipment for conveyance and transport of workers;

(b)

in case of any urgent and immediate danger that come to his notice-

(i)

to inform the manager and the Inspector about the same; and

(ii)

to suggest remedial measures necessary to avoid the danger; and

(c)

to accompany the Inspector in the course of complete inspection of the mine and also during such other inspections as may be considered necessary by the Inspector.

(2)

The workmen's inspector shall record a full report of the matters ascertained as a result of his inspection in an interleaved paged and bound register kept for the purpose at the mine in Form U. The workmen's inspector making the entry in the register aforesaid shall duly sign such entries with date and take a copy of the entries for his record.

29.

-S. Action on the report of workmen's inspector

-(1) The owner, agent or manager of the mine shall enter in the register mentioned in sub-rule (2) of rule 29-R, within a period of 15 days from the date of entry in the register remarks thereon showing the remedial measures taken and the

date on which such action was taken.

(2)

In case of any difference of opinion between the workmen's inspector and the owner, agent or manager, a copy of the report with remarks thereon regarding such difference of opinion shall be sent by the owner, agent or manager to the Chief Inspector or an Inspector for decision.

29.

-T. Safety committee

.-For every mine wherein more than 100 persons are ordinarily employed, the owner, agent or manager shall constitute a safety committee for promoting safety in the mine:

Provided that the Chief Inspector or an Inspector may by a general or special order in writing require the owner, agent or manager of any group of specified mines or of all mines in a specified area to constitute a group safety committee in such manner and subject to such conditions as he may specify in the order.

29.

-U. Composition of safety committee

.-The safety committee shall consist of-

(a)

the manager who shall be the Chairman;

(b)

five officials or competent persons of the mine nominated by the Chairman;

(c)

five workmen nominated by the workmen of the mine in accordance with the procedure prescribed in clause (a) of sub-rule (1) of rule 29-Q for nomination of workmen's inspector;

(d)

workmen's inspector where so designated; and

(e)

the Safety Officer, or where there is no Safety Officer, the senior most mine Official next to the manager, who shall act as Secretary to the Committee:

Provided that any other official, competent person or work person may be co-opted by the Chairman as a member of the committee on any day or days of the meeting, if considered necessary.

29.

-V. Functions of safety committee

.-The functions of the committee shall be-

(1)

to discuss remedial measures against the unsafe conditions and practices in the mine as pointed out in the reports of workmen's inspector or otherwise brought to the notice of the committee and make appropriate recommendations;

(2)

to consider, before commencement of operations in any new district of the mine or commissioning of new electrical or mechanical installation or introduction of new mining technique, the proposed safety and health measures including related codes or practice and to make appropriate recommendations;

(3)

to discuss the report of inquiry into accident and make appropriate recommendations;

(4)

to formulate and implement appropriate safety campaigns based on analysis of accidents;

(5)

to meet at least once in 30 days to consider the matter placed before it and any other matter that may be raised by the members and make such recommendations as it may deem fit; and

(6)

to serve as a forum for communication on safety and occupational health matters.

29.

-W. Implementation of recommendations of the safety committee

.-The owner, agent or manager shall, within a period of 15 days from the date of receipt of the recommendations of the

safety committee, shall indicate to the Secretary to the safety committee, the action taken to implement the recommendation.

Chapter V

Health And Sanitation Provisions

30.

Quantity of drinking water

-(1) The quantity of drinking water to be provided in a mine or any part thereof shall be on a scale of at least [two litres] [Substituted by G.S.R. 31, dated 29.12.1960.]

for every person employed at any one time and such drinking water shall be readily available at conveniently accessible points during the whole of the working shift.

(2)

Where 100 persons or more are employed, either above ground or in open cast workings at any one time an Inspector may by order in writing require the drinking water to be effectively cooled by mechanical or other means available.

(3)

No charge shall be made for the drinking water so supplied.

31.

Storage of drinking water

.- [(1) If drinking water is not provided from taps connected with constant water supply system, it shall be kept cool in suitable vessels sheltered from weather and such vessels shall be emptied, cleaned and refilled every day. Steps shall be taken to preserve the water, the storage vessels and the vessels used for drinking water in a clean and hygienic condition.]

[Substituted by G.S.R. 1786, dated 30.9.1970.]

(2)

If the source of drinking water is not from a public water supply system, an Inspector may by order in writing require the owner, agent or manager of the mine to submit with the least possible delay a certificate from a competent health authority or analyst as to the fitness of the water for human consumption.

32.

Decision of Chief Inspector final

.-If any question arises as to whether water supply arrangements are satisfactory and in accordance with the requirements of section 19 and rules 30 and 31, the decision of the Chief Inspector shall be final.

33.

Surface latrines and urinals

.- (1) On the surface at every mine adequate latrine and urinal accommodation shall be provided at conveniently accessible places separately for the use of males and females employed in the mine.

(2)

The scale of latrine accommodation shall be at least one seat for every 50 males and at least one seat for every 50 females employed at any one time:

Provided that where sanitary latrines are maintained in bathing places, the number of latrines to be provided under this rule may include such sanitary latrines.

Note.-In calculating latrine accommodation, any fraction less than 50 shall be reckoned as 50.

34.

Standards of construction

.-Every latrine on the surface provided for the use of persons employed in a mine shall conform to the following standards of construction-

(a)

it shall be on a site approved of in writing by an Inspector;

(b)

it shall be built of brick or other suitable building material;

(c)

it shall be adequately drained and properly ventilated and afforded effective protection from the weather;

(d)

it shall be of a type approved of in writing by an Inspector;

(e)

the floors and any interior surface of walls up to a height of [1.25 metres]

[Substituted by G.S.R. 31, dated 29.12.1960.]

shall be cement punned or otherwise so finished as to provide a smooth impervious surface;

(f)

it shall be partitioned off so as to secure privacy and shall have a proper door and fastenings and where a latrine intended for the use of one sex adjoins a latrine intended for the use of other sex, the approaches shall be separate;

(g)

where a latrine is of the service type, the service chamber shall be provided with an efficient trap door and the receptacles for night-soil shall be of galvanised iron;

(h)

the interior walls, ceilings and partitions shall be white-washed once at least in every four months, and the date of such white-washing shall be recorded in a book kept at the mine for the purpose:

Provided that this requirement regarding white-washing shall not apply to those parts of walls, ceilings or partitions which are laid in glazed tiles or otherwise finished so as to provide a smooth, polished and impervious surface but all these parts shall be washed with suitable detergents and disinfectants at least once in every seven days.

35.

Sign boards to be displayed

.-Where persons of both sexes are employed there shall be displayed outside each latrine a signboard in the language understood by the majority of work persons "For Males" or "For Females" as the case may be. Each signboard shall also have the figure of a man or a woman as the case may be.

36.

Provision of water for washing, etc

.- (1) Where a piped water supply is available, a sufficient number of water taps, conveniently accessible, shall be provided in or near such latrines.

(2)

If piped water supply is not available a sufficient quantity of water shall be kept stored in suitable receptacles near such latrines.

37.

Underground latrines

.-If in any mine more than fifty persons are employed underground at any one time, latrines shall be provided underground on a scale approved by an Inspector at convenient points near the working shafts and at entrances to the districts or sections of the mine. The latrines shall be of a type approved of in writing by an Inspector.

38.

Sanitation

.- (1) At every mine all underground working places and travelling roadways shall be kept clean from excreta.

(2)

All latrines and urinals in or about a mine shall be kept in a clean and sanitary condition.

(3)

Receptacles for night soil shall be cleaned and disinfected at least once in every day.

(4)

Proper arrangements shall be made on the surface for the disposal of night soil and urine. Such arrangements shall comply with the requirements of any health authority or Mines Board within whose jurisdiction the mine is situated.

39.

Obligation of work persons

.- (1) No person shall wantonly misuse or damage the latrines provided either on the surface or underground.

(2)

No person shall pollute the underground workings of a mine with excreta. All persons employed underground shall acquaint themselves with the sanitary arrangements provided from time to time in the sections of the mine in which they have to work or pass.

Chapter VI

First-Aid And Medical Appliances

40.

[Arrangements for training persons in first-aid, etc

[Substituted by G.S.R. 1786, dated 30.9.1970.]

.(1) It shall be the duty of the owner, agent or manager of a mine to see that adequate and suitable arrangements are made for the training of persons in first-aid and the provision of such equipment as is prescribed in these rules.

(2)

(a)

It shall be the duty of the owner, agent or manager to see that adequate and suitable arrangements are made for the speedy removal from the mine to a dispensary or hospital, of persons employed in the mine who while on duty suffer from serious bodily injury or illness of a serious nature.

(b)

Unless otherwise approved by an order in writing of the Chief Inspector or an Inspector and subject to such conditions as may be specified therein, the arrangements for the purpose of clause (a) shall be by means of a proper ambulance van, and, in case such ambulance van is not readily available in spite of proper and timely requisition, it may be by other suitable motor vehicle in which the person can be taken in a supine condition on a stretcher.]

41.

First-aid qualifications

.-No person other than a qualified nurse, dresser, compounder-cum-dresser or medical practitioner shall be appointed to render first-aid [or to be in charge of a first-aid station referred to in rule 44]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

unless he is the holder of a valid first-aid certificate of the standard of St. John's Ambulance Association (India).

42.

[First-aid personnel

[Substituted by G.S.R. 1886, dated 14.12.1965.]

.(1) The owner, agent or manager of a mine shall see that every first-aid station provided under rule 44 is placed, during every working shift, in charge of a person holding qualifications specified in rule 41. The person in charge of a first-aid station in any shift should be readily available throughout the shift.

(2)

The name and designation of every person appointed to be in charge of a first-aid station shall be prominently displayed at every first-aid station.

(3)

An up-to-date list of persons appointed to be in charge of first-aid stations in the mine shall be kept in the office of the mine and also displayed prominently at the first-aid room.]

43.

[First-aid]

[Substituted by G.S.R. 239, dated 3.2.1965.]

rooms

.(1) At every mine employing [more than 150 persons]

[Substituted by G.S.R. 239, dated 3.2.1965.]

on any one day of the preceding calendar year, there shall be provided and maintained in good order a suitable [first-aid room]

[Substituted by G.S.R. 239, dated 3.2.1965.]

.

(2)

The [first-aid]

[Substituted by G.S.R. 239, dated 3.2.1965.]

room shall be situated at a convenient place on the surface of the mine and shall be used only for first-aid [* * *]

[The words " and ambulance" omitted by G.S.R. 239, dated 3.2.1965.]

work.

(3)

The first-aid room shall have a floor space of not less than [10 square metres]

[Substituted by G.S.R. 31, dated 29.12.1960.]

and shall contain at least the equipment specified in the Second Schedule.

(4)

[(a) The first-aid room shall be in charge of a qualified medical practitioner, where the number of persons ordinarily employed in a mine is more than 1000, such medical practitioner shall be a whole time employee at the mine.

(b)

The medical practitioner referred to in clause (a) shall be assisted by a nurse and a dresser or a compounder and a dresser who are qualified in the Allopathic system of medicine. Whenever the Chief Inspector feels it necessary, he may require by an order in writing that such number of additional nurses or compounders or dressers shall be appointed to assist the medical practitioner as may be specified by him.

(c)

The nurse, compounder or dresser referred to in clause (b) shall be whole time employee of the mine and shall be readily available at the first-aid room throughout the period when persons work at the mine:

Provided that where in conformity with any other law in force, or otherwise an adequately equipped hospital or dispensary belonging to the owner of the mine or to any Mines Welfare Organisation is provided and maintained at or in the immediate vicinity of the mine, the Chief Inspector or an Inspector authorised by him in this behalf may grant exemption from the provision of this sub-rule subject to such conditions as he may specify in writing.]

[Substituted by G.S.R. 1786, dated 30.9.1970.]

(5)

Every person who suffers an injury during the course of work shall report for examination or treatment at the [First-aid]

[Substituted by G.S.R. 239, dated 3.2.1965.]

room, hospital or dispensary, as the case may be, before leaving the mine, irrespective of first-aid having been rendered at or near the place of work.

[44. First-aid stations

-(1) At every mine there shall be provided and maintained first-aid equipment as prescribed in the Third Schedule at conveniently accessible stations where injured persons may receive first-aid treatment, as follows:-

(a)

above ground, one first-aid station-

(i)
at the top of every shaft or incline where men or material are normally wound or hauled;

(ii)
in every workshop;

(iii)
at every screening plant and loading place; and

(iv)
at every other place where more than 50 persons are employed at any one time.

(b)

in every opencast working, one first-aid station for every 50 persons or part thereof, employed at any one time; and

(c)

below ground, one first-aid station-

(i)
at the bottom of every shaft where men or material are normally wound, and at or near every plant;

(ii)
near the drive end of every haulage;

(iii)
in or at the entrance to every district or section of the mine:

Provided that nothing in this sub-rule shall be construed to require the provision of a first-aid station within 300 metres of another first-aid station.

(2)

It shall be the duty of the person appointed to be in charge of a first-aid station under rule 42, to see that the equipment provided at the station is kept in good order and that it is replenished whenever necessary.

(3)

An up-to-date list of all first-aid stations provided in the mine shall be kept in the office of the mine and also displayed prominently at the first-aid room.]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

45.

[Carrying of first-aid outfit by officials

[Substituted by G.S.R. 1886, dated 14.12.1965.]

.-Notwithstanding anything contained in rule 42, every overman, foreman, sirdar, mate, shot-firer, blaster, electrician and mechanic in a mine shall hold the first-aid qualifications specified in rule 41 and shall carry, while on duty, a first-aid outfit consisting of one large sterilized dressing, one small sterilized dressing and an ampule of tincture of iodine or other suitable antiseptic, and such outfit shall be securely packed to protect it against dirt and water.]

[45-A. Medical attention in case of injury

[Added by G.S.R. 1786, dated 30.9.1970.]

.- (1) Every person receiving an injury in the course of his duty shall, as soon as possible, report the same to an official. Where the person receiving an injury is not in a position to report the same to an official, it shall be the duty of the person who first comes to know of it, to report the same to an official. The official shall make such arrangements for rendering first-aid to the injured as may be required. If in the opinion of the official the injury is of such a nature as to require immediate attention by the medical practitioner he shall arrange for the medical practitioner to be called.

(2)

If an official who is required to carry a first-aid outfit under rule 45 receives information about injury to a work-person, he shall himself attend to the injured person.

(3)

It shall be the duty of the person in charge of the nearest first-aid station provided under rule 44 to render such first-aid to the injured person as may be necessary.]

Chapter VII

Employment Of Persons

46.

Persons holding positions of supervision or management, etc

.-For the purpose of section 37, the following shall be deemed to be persons holding positions of supervision or management or employed in a confidential capacity:-

(a)

[manager, under manager, underground manager, assistant manager, ventilation officer and safety officer;]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

(b)

mining, electrical and mechanical engineer;

(c)

[overman, foreman, sirdar, and mate;

[Substituted by G.S.R. 1886, dated 14.12.1965.]

(d)

mechanical and electrical foreman and electrical supervisor;]

(e)

surveyor and assistant surveyor;

(f)

medical officer, chemist, assayer, metallurgist and welfare or personnel officer;

(g)

[any other person who in the opinion of the Chief Inspector holds a position of supervision or management.]

[Clause (g) deleted and Clause (h) renumbered as Clause (g) by G.S.R. 312, dated 15.1.1957.]

47.

Weekly day of rest

.(1) For the purpose of sections 28 and 29, a day of rest for any person shall mean a period of rest of at least 24 consecutive hours.

(2)

There shall be posted up in a conspicuous place outside the office of every mine a notice showing the weekly day of rest. Where the weekly day of rest is not the same day for all persons employed in the mine, the notice shall show the day of rest allowed to each relay, or set of persons, or individual.

48.

Notice regarding hours of work

.(1) The notice of hours of work referred to in sub-section (1) of section 36 shall be maintained in Form A.

(2)

In addition to the particulars specified in sub-sections (1) and (3) of section 36, the notice shall also show the particulars of the system in which periodical changes of shifts are made for all or each set of persons employed in the mine.

(3)

A copy of the notice shall be affixed on the first page in the registers maintained in Forms B, C, D and E.

49.

Compensatory days of rest

.(1) The compensatory days of rest to be allowed under sub-section (1) of section 29 shall be so spaced that in any one week not more than two such days shall be allowed to any one person.

(2)

On or before the last day of every month, there shall be displayed on a notice board outside the office of the mine a list of all persons who have not been allowed compensatory days of rest during that month, and the dates on which compensatory days of rest will be allowed to them in the following two months.

(3)

In the event of a person being discharged or dismissed such number of compensatory days as are due to him, shall not be reckoned as part of any period of notice to which he is entitled under any rule, award, agreement or contract of service, and he shall be allowed all such days of compensatory rest before the date of his discharge or dismissal.

(4)

There shall be maintained at every mine a register of compensatory days of rest in Form F.

50.

Exemption from hours and limitation of employment

.-For the purpose of section 39 of the Act, male adults employed in a mine on any work specified in column 1 of the Fourth Schedule shall be exempted from the provisions of the sections of the Act specified in column 2, subject to such conditions as are specified in column 3.

51.

[Termination of employment

[Substituted by G.S.R. 1886, dated 14.12.1965.]

.-When the employment of a person in a mine is terminated, whether by way of dismissal, discharge or otherwise, or where such person leaves the employment, the date of such termination or leaving shall be entered against his name in the register maintained in Form B.]

52.

[Employment of apprentices and trainees

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

.-No apprentice or trainee of the age of sixteen to eighteen years shall be employed in a mine except under immediate supervision of a competent person and no such apprentice or trainee shall be employed in a mine-

(a)

in any work which is unduly arduous; or

(b)

in close proximity to any machinery involving risk of injury from any moving part of the machine; or

(c)

at any place where the dust produced in mining operations is known to constitute a hazard to health.]

Chapter VIII

Leave With Wages And Overtime

53.

Register of leave with wages

.- [(1) The owner, agent or manager of every mine shall maintain in respect of every employee thereof a record of leave with wages in Forms G and H:

Provided that if the Chief Inspector or an Inspector is of opinion that any muster roll or register maintained in accordance with any other rules for the time being in force contains all the particulars required for the observance of the provisions contained in Chapter VII of the Act, he may, by order in writing, permit the maintenance of such muster roll or register in place of the registers in Form G and Form H:

Provided further that in the case of a mine exempted under section 56, the Chief Inspector or an Inspector may permit the maintenance of records of leave with wages in such manner as he may approve by order in writing.]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

(2)

The registers mentioned in sub-rule (1) shall be preserved for a period of two years after the last entry in them has been made and shall not be destroyed even after the expiry of that period unless it has been certified by an Inspector that the leave account therein has been properly transferred to the new registers.

54.

[Information regarding leave with wages

[Added by G.S.R. 1786, dated 30.9.1970. Earlier Rule 53 omitted by G.S.R. 1886, dated 14.12.1965.]

.-On or before the 20th day of February every year the owner, agent or manager of a mine shall exhibit on the notice board at the office of the mine information regarding leave with wages due to each person employed in the mine calculated upto the 1st of January of that year giving the particulars specified in Form L.]

55.

[* * *]

[Rules 55, 57 and 58 omitted by G.S.R. 1886, dated 14.12.1965.]

56.

Payment of leave wages due if a person dies

.-In the event of death of any person entitled to leave with wages all arrears of such leave wages accrue to his legal heirs or nominee as the case may be.

57.

[* * *]

[Rules 55, 57 and 58 omitted by G.S.R. 1886, dated 14.12.1965.]

58.

[* * *]

[Rules 55, 57 and 58 omitted by G.S.R. 1886, dated 14.12.1965.]

59.

Overtime register

.-The register required by sub-section (4) of section 33 shall be maintained in Form I.

60.

Extra wages for overtime

.- [(1)]

[Sub-Rules (1), (2) and (3) renumbered by G.S.R. 1786, dated 30.9.1970.]

For the purpose of section 33, overtime shall be paid at the end of each wage-period [* * *]

[Certain words omitted by G.S.R. 1886, dated 14.12.1965.]

.

(2)

[]

[Sub-Rules (1), (2) and (3) renumbered by G.S.R. 1786, dated 30.9.1970.]

In calculating overtime on any day a fraction of an hour less than 30 minutes shall be ignored and a fraction of 30 minutes or more shall be counted as one hour.

(3)

[]

[Sub-Rules (1), (2) and (3) renumbered by G.S.R. 1786, dated 30.9.1970.]

In calculating the ordinary rate of wages or earnings in the case of a person paid by the month, the daily wages shall be 1/26th of his monthly rate of wages and in the case of any other person it shall be the ordinary rate of his daily wages or earnings as the case may be.

61.

Cases of exemption under section 56

-(1) Where an exemption is granted under section 56, the manager shall display at the main entrance of the mine, a notice giving full details of the system established in the mine for leave with wages and shall send a copy of it to the Inspector.

(2)

No alteration shall be made in the scheme approved by the Central Government at the time of granting exemption under section 56 without its previous sanction.

Chapter IX

Welfare Amenities

62.

[Provision of shelters

[Substituted by G.S.R. 1886, dated 14.12.1965.]

.-At every mine where more than 50 persons are ordinarily employed, there shall be provided adequate and suitable shelter at or near loading wharves, opencast workings, workshops and mine entrances where 25 or more persons are ordinarily employed, for taking food and rest:

Provided that any canteen maintained in accordance with these rules may be regarded as part of the requirements of this rule.]

63.

Standards of shelters

.-Every shelter shall-

(a)

have a floor area of not less than [14 square metres]

[Substituted by G.S.R. 31, dated 29.12.1960.]

; and

(i)

[in the case of a flat roof, a height of not less than 2.5 metres to the lowest part of the roof; and

[Substituted by G.S.R. 31, dated 29.12.1960.]

(ii)

where the roof is a sloping one, a height of not less than 1.8 metres to the lowest part of the roof and not less than 2.5 metres to the highest part of the roof;]

(b)

be so constructed as to afford effective protection from the weather;

(c)

be constantly provided with as adequate supply of cool and wholesome drinking water during the working hours of the mine;

(d)

be kept in a clean and tidy condition.

64.

[Provision of canteens

[Substituted by G.S.R. 1786, dated 30.9.1970.]

-(1) At every mine wherein more than 250 persons are ordinarily employed, if the Chief Inspector or an Inspector so requires, there shall be provided and maintained in or adjacent to the precincts of the mine a canteen for the use of all persons employed:

Provided that where the conditions at any mine so require the Chief Inspector or an Inspector may direct that other suitable arrangements approved by him for serving food, drink and other items to the persons employed be provided

and maintained in addition to the canteen required under this sub-rule.

(2)

If in any case, the Chief Inspector or Inspector is satisfied that no inconvenience will be caused to the employees concerned if a single canteen is provided to serve neighbouring mines, he may, by an order in writing and subject to such conditions as he may specify therein, authorise the owners, agents or managers of such mines to provide jointly a single canteen.]

65.

Standards of canteen

.- [(1)]

[Renumbered by G.S.R. 1786, dated 30.9.1970.]

Every canteen shall-

(a)

be constructed in accordance with plans and specifications approved by the Chief Inspector or Inspector;

(b)

be situated not less than [15 metres]

[Substituted by G.S.R. 31, dated 29.12.1960.]

from any latrine, urinal, boiler house, engine room, coal heap, ash heap or heap of other material and any other source of dust or smoke;

(c)

be sufficiently lighted during all hours when open for use;

(d)

be provided with a washing place for females, suitably separated or screened to secure privacy;

(e)

be white-washed or colour-washed inside the rooms and passages at least once a year, and woodwork and structural iron or steel work shall be varnished or painted at least once every three years:

Provided that the inside walls of the kitchen shall be white-washed or colour-washed once every four months;

(f)

be provided with receptacles for garbage and have drains to carry away waste water.

(2)

[The canteen or any part thereof shall not be used or allowed to be used for any other purpose which tends to interfere with the normal or efficient functioning of the canteen.]

[Added by G.S.R. 31, dated 29.12.1960.]

.

66.

Furniture and equipment

.-In every canteen there shall be provided and maintained-

(a)

sufficient furniture, utensils and other equipment necessary for its efficient operation;

(b)

an adequate supply of cool and wholesome drinking water;

(c)

suitable clean clothes for persons cooking and serving food, drink, etc.

67.

Cleanliness

.- (1) The canteen and its precincts shall be kept in a sanitary condition.

(2)

An adequate supply of hot water shall be provided for cleansing utensils and equipment, and all furniture, utensils and other equipment shall be kept clean and in a hygienic condition.

68.

[Maintenance of canteens and provisions of staff

[Substituted by G.S.R. 1886, dated 14.12.1965.]

.- (1) Every canteen provided under these rules shall be run by the owner, agent or [officer-in-charge, canteen]
[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]
[thereof who shall appoint supervisory and other staff sufficient for the proper working of the canteen.

(2)

Notwithstanding anything contained in sub-rule (1), where the workers offer to run the canteen themselves and for this purpose organise a Co-operative Society, they shall be permitted to do so with financial assistance from the management.]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

(3)

[In every such canteen, such food, drink or other articles shall be made available as may be recommended by the Canteen Managing Committee appointed under rule 69.]

[Inserted by G.S.R. 1786, dated 30.9.1970.]

69.

Canteen Managing Committee

.- (1) The owner, agent or [officer-in-charge, canteen]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall appoint a Canteen Managing Committee which shall be consulted from time to time, but not less than once a month, as to the management and working of the canteen.

(2)

(a)

The Committee shall consist of an equal number of members nominated by the owner, agent or [officer-in-charge, canteen]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

and elected by the persons employed in the mine. The number of elected members shall be on a scale of one for every 1,000 persons employed, provided that the number shall not be more than 5 or less than 2.

(b)

The term of office of the elected members shall be two years commencing from the date of the last election, no account being taken of a by-election.

(c)

The owner, agent or [officer-in-charge, canteen]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall determine the procedure for and supervise the elections to the Committee.

(3)

The owner, agent or [officer-in-charge, canteen]

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

shall appoint either himself or his nominee as ex officio Chairman of the Committee and the Chairman shall preside at every meeting of the Committee.

(4)

The proceedings of every meeting of the Committee shall be recorded in a minute book and shall be signed by the Chairman.

70.

Prices to be charged

.- Food, drink and other items served in a canteen shall be sold on a non-profit basis and the prices charged shall be subject to the approval of the Canteen Managing Committee. A list of approved prices shall be conspicuously displayed in the canteen in English, Hindi and in the language of the district in which the mine is situated.

[Explanation .- In calculating the cost of food, drink and other items served in a canteen, expenditure on the following items shall not be taken into account:-

(a)

the cost of utensils including cooking vessels and utensils necessary to serve food to the workmen;

(b)

the cost of furniture;

(c)
the cost of coal, fuel and electricity; and

(d)
the salaries of supervisory and other staff.]

71.

Accounts

.-Proper accounts pertaining to the canteen shall be maintained. Such accounts shall be audited once every twelve months by a [chartered accountant]

[Substituted by G.S.R. 3744, dated 16.11.1957.]

or auditor, and a balance-sheet shall be submitted to the Canteen Managing Committee not later than two months after the date of closing of the accounts:

[Provided that the accounts pertaining to a canteen in a mine owned and worked by Government having its own Accounts Department, may be audited by such Department.]

[Inserted by G.S.R. 3744, dated 16.11.1957.]

72.

Welfare Officers

.- [(1) For every mine wherein 500 or more persons are]

[Substituted by G.S.R. 607, dated 16.5.1959.]

[ordinarily employed]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

[, the owner, agent or manager shall appoint a suitably qualified person as Welfare Officer; and where the number of persons so employed in a mine exceeds 2,500, such Welfare Officer shall be assisted by one suitably qualified additional Welfare Officer for every additional 2,000 persons or part thereof employed.]

[Substituted by G.S.R. 607, dated 16.5.1959.]

(2)

No person shall act as a Welfare Officer of a mine unless he possesses-

(a)

a University degree;

(b)

a degree or diploma in social science, [or social work]

[Inserted by G.S.R. 1886, dated 14.12.1965.]

or labour welfare [recognised by the Government for the purpose of this rule]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

and preferably practical experience of handling labour problems in any industrial undertaking for at least three years; and

(c)

a knowledge of the language of the district in which the mine is situated or the language understood by the majority of persons employed in the mine:

Provided that in case of a person already in service as a Welfare Officer in a mine the above qualifications may, with the approval of the Chief Inspector, be relaxed.

[(2-A) Notwithstanding anything contained in sub-rule (2), the Labour Officer included in the Central Pool under the provisions of the Labour Officers (Central Pool) Recruitment and Conditions of Service Rules, 1951, shall be eligible for appointment as a Welfare Officer in a mine.]

[Inserted by G.S.R. 966, dated 17.5.1968.]

(3)

Where by reason of temporary absence, illness or any other similar cause, the Welfare Officer is unable to perform his duties, the owner, agent or manager shall authorise in writing a person whom he considers competent to act in his place:

Provided that no such authority shall have effect for a period in excess of 30 days except with the previous consent of the Chief Inspector or Inspector.

(4)

[A written notice of every appointment, authorisation, discharge, dismissal, resignation or termination of service of every Welfare Officer and of the date thereof shall be sent by the owner, agent or manager, to the Chief Inspector within seven days from the date of such appointment, authorisation, discharge, dismissal, resignation or termination of service.]

[Substituted by G.S.R. 1886, dated 14.12.1965.]

(5)

[The post of Welfare Officer shall be advertised in a newspaper having a wide circulation in the State.]

[Inserted by G.S.R. 607, dated 16.5.1969.]

73.

Duties of Welfare Officers

.- [(1)]

[Renumbered by G.S.R. 607, dated 16.5.1969.]

The duties of Welfare Officers shall be-

(i)

to establish contacts and hold consultations with a view to maintain harmonious relations between the management and persons employed in the mine;

(ii)

to bring to the notice of the management the grievances of employees, individual as well as collective, with a view to securing their expeditious redressal;

(iii)

to promote relations between management and employees which will ensure productive efficiency as well as amelioration in the working conditions and to help workers to adjust and adapt themselves to their working environments;

(iv)

to assist in the formation of Works and Joint Production Committees, Co-operative Societies and Safety-First and Welfare Committees, and to supervise their work;

(v)

to help the management in regulating the grant of leave with wages and explain to the workers the provisions relating to leave with wages and other leave privileges and to guide the workers in the matter of submission of applications for grant of leave for regulating authorised absence;

(vi)

to advise on welfare provisions, such as housing facilities, food-stuffs, social and recreational facilities, sanitation, individual personnel problems and education of children;

(vii)

to supervise welfare activities, statutory or otherwise, including education and training of employees;

(viii)

to suggest measures which will lend to raise the standard of living of workers and in general promote their well-being;

(ix)

to perform any other duty connected with the welfare of the persons employed in the mine.

(2)

[Notwithstanding anything contained in sub-rule (1), no Welfare Officer shall deal with any disciplinary case against a person employed in a mine, or appear before a Conciliation Officer, Court or Tribunal on behalf of the management of a mine against a person or persons employed in the mine, except when he is required by the Conciliation Officer, Court or Tribunal to appear as an independent witness:

Provided that nothing in this sub-rule shall be deemed to prohibit a person employed in a mine from approaching the Welfare Officer in respect of a grievance arising out of any case of disciplinary action against him.]

[Inserted by G.S.R. 1511, dated 23.9.1966.]

[[(3)]

[Inserted by G.S.R. 607, dated 16.5.1969.]

[Every Welfare Officer shall keep a record of his day-to-day work and shall, at the end of every year, forward to the Chief Inspector through the manager of the mine concerned, a summary of the report of his work during the year.]

[Inserted by G.S.R. 607, dated 16.5.1969.]

[Inserted by G.S.R. 1886, dated 14.12.1965.]

74.

Conditions of service

-(1) A Welfare Officer shall be given appropriate status corresponding to the status of the other executive heads of the mine.

(2)

[The conditions of service of a Welfare Officer shall be the same as of other members of the staff or corresponding status in the mine:

Provided that before the owner, agent or manager discharges or dismisses a Welfare Officer, who has satisfactorily completed a probationary period of six months, he shall consult the Chief Inspector or an Inspector authorised in this behalf by the Chief Inspector.]

[Renumbered by G.S.R. 607, dated 16.5.1969.]

(3)

[A Welfare Officer shall not be given less than two hundred rupees as his basic pay per mensem.]

[Inserted by G.S.R. 607, dated 16.5.1969.]

Chapter X

[Registers, Notices and Returns]

[Substituted by G.S.R. 1786, dated 30.9.1970.]

75.

Maintenance and production of reports, registers and other records

.-All reports, registers and other records maintained in pursuance of the regulations, rules or bye-laws, unless otherwise provided for, shall-

(a)

be kept at an office or the nearest convenient building within the precincts of the mines;

(b)

be legibly entered in ink in English, Hindi or either in the language of the district in which the mine is situated or the language understood by a majority of the persons employed in the mine;

(c)

be preserved in original for a period of one calendar year after the date of the last report or entry:

Provided that when the original record is lost or destroyed before the expiry of one year's period, true copies thereof, if available, shall be preserved for the prescribed period;

(d)

be produced on demand before the Chief Inspector or Inspector or any person authorised in that behalf by the Central Government.

76.

[Registers of reportable and minor accidents

[Substituted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

-(1) The register required by sub-section (1-A) of section 23 of the Act shall be maintained in Form J and a copy thereof shall be sent to the concerned Inspector of Mines.

(2)

The register required by sub-section (3) of section 23 of the Act shall be maintained in Form K].

77.

Register of employees

.-The register required by sub-section (1) of section 48 shall be maintained in Form B, [keeping separate page for each person employed in the mine]

[Inserted by G.S.R. 656, dated 5.6.1980 (w.e.f. 1.10.1980).]

.

[77-A. Identity tokens

[Inserted by G.S.R. 656, dated 5.6.1980 (w.e.f. 1.10.1980).]

-(1)(a) The owner, agent or manager of a mine shall issue, free of cost, to every person employed in the mine, a metal token (hereinafter referred to as token), bearing a number and other particulars by which such person may be identified:

Provided that if any other equally effective system of identification is in force in any mine and the Chief Inspector is satisfied of the same, he may exempt such mine from the operation of this rule, subject to such conditions as he may deem fit to impose.

(b)

No person employed in a mine shall enter or be permitted to enter for work in any part of a mine unless he carries on his person the token issued to him.

(c)

The token shall be of such durable and strong material as cannot be easily damaged or defaced.

(d)

The token shall be carried by an employee or his person during the time he is on duty.

(e)

Where a token is damaged, defaced or lost, due to reasons other than the fault or negligence of the employee concerned, a duplicate token shall be issued forthwith to such employee free of charge and such duplicate token shall be stamped "DUPLICATE".

(f)

Where a token is damaged, defaced or lost due to the fault or negligence of the employee concerned, a duplicate token stamped "DUPLICATE", shall be issued forthwith to such employee and such employee shall be liable to pay fifty per cent of the cost of the duplicate token issued to him.

(2)

The token number and other particulars by which the employee may be identified, together with a passport size photograph, shall be entered in the register in Form B prescribed under rule 77.]

78.

Register of daily attendance

-(1) The registers required by sub-section (4) of section 48 of persons employed in the mine (a) below ground, (b) in open-cast workings and (c) above ground shall be maintained in Forms C, D and E respectively.

(2)

The entries in the register maintained in Form C shall be made at the entrance or entrances to the mine, at the time when a person against whose name the entry is made enters or leaves the mine.

(3)

The entries in the registers maintained in Forms D and E shall be made at suitable points on the premises of the mine with reasonable despatch, at the commencement and end of the period of work.

79.

Postings of abstracts, bye-laws and notices

-(1) The abstracts of the Act as given in the Fifth Schedule shall be posted up outside the office of every mine in English, Hindi and either in the language of the district in which the mine is situated or the language understood by a majority of the persons employed in the mine.

(2)

The bye-laws shall be posted up in the manner required by sub-section (5) of section 61, in English, Hindi and either in the language of the district in which the mine is situated or the language understood by a majority of the persons employed in the mine:

Provided that the Chief Inspector may require the abstracts and the bye-laws to be posted up in any Indian language other than the language of the district in which the mine is situated or the language understood by a majority of the persons employed in the mine.

(3)

Every notice required to be posted up under these rules shall be in English, Hindi and either in the language of the district in which the mine is situated or the language understood by a majority of the persons employed in the mine.

(4)

The abstracts, bye-laws and notices required to be posted up by the Act, regulations and rules shall be maintained in a clear and legible condition.

Chapter XI

Miscellaneous

80.

Observance of local time

.-For the purpose of section 4, the local mean time that shall ordinarily be observed in any class or group of mines situated in any local area, specified in column 1 of the Sixth Schedule shall be as specified in column 2 thereof.

81.

Intoxicating drugs and drinks

.-(1) No intoxicating drink or drug shall be carried or permitted to be carried below ground into the workings of a mine or part.

(2)

No person shall, during the course of his employment in or about a mine, possess, carry or consume any intoxicating drink or drug or remain in a state of intoxication or drunkenness.

82.

Occupational diseases-Fees of medical practitioner

.-A medical practitioner making an examination in accordance with sub-section (2) of section 25, shall be paid as follows:

(a)

a fee not exceeding rupees sixteen for each clinical examination.

(b)

a fee not exceeding rupees sixteen for each X-ray examination.

[82-A. Disability allowance and compensation for occupational diseases

[Inserted by G.S.R. 316, dated 14.4.1986 (w.e.f. 26.4.1986).]

.-(1) The disability allowance payable under first proviso to sub-section (5) of section 9-A of the Act shall be at the rate of fifty per cent. of the monthly wages that he was in receipt of immediately before presenting himself for the medical examination under sub-section (2) of section 9-A of the Act.

(2)

If, a person decides to leave his employment in the mine, he shall be entitled to compensation as may be admissible under the provisions of the Workmen's Compensation Act, 1923 (

8 of 1923

), as contracting of such disease is deemed to be an injury by accident under that Act. In case the disease is not covered under Schedule III of that Act, he shall be paid by way of disability compensation at the same rates as provided under that Act as if it is an injury. The lump sum compensation payable under this rule shall not be in addition to the compensation payable under that Act.

Explanation .-For the purposes of this rule, "wages" shall have the same meaning as defined in clause (m) of sub-section (1) of section 2 of the Workmen's Compensation Act, 1923 (

8 of 1923

).

(3)

The provisions of sub-rules (1) and (2) shall not operate to the prejudice to any right to which a person employed in a mine may be entitled to under any other law or under the terms of any award, agreement or contract of service and when such award, agreement or contract of service provides for more favourable benefits than the disability compensation provided in sub-rules (1) and (2) such person shall be entitled to such benefits only.]

83.

Mode of payment of fees, etc

.-The fees or other expenses payable by the owner, agent or manager under these rules shall be paid directly into the treasury or a branch of the State Bank of India and the receipt of the treasury or bank shall be sent to the Chief Inspector alongwith the particulars to which the fees or other expenses relate.

[83-A. Appeals to the Chief Inspector

[Inserted by G.S.R. 18, dated 24.12.1973 (w.e.f. 5.1.1974).]

.-Against an order made by the Inspector under any of these rules, an appeal shall lie to the Chief Inspector who may confirm or modify or cancel the order. Every such appeal shall be preferred within 30 days of the receipt of the order by the appellant.]

Chapter XII

Rescission And Savings

84.

Rescission and savings

-(1) All rules framed by State Governments under section 30 of Indian Mines Act, 1923, those contained in Chapters II, III and VI of the Mysore Gold Mines Rules, 1953, and those issued vide the Government of India Notification No. S.R.O. 2403, dated the 12th July, 1954, are hereby rescinded, but all acts done, orders issued and certificates granted or renewed under any rule so rescinded, so far as they are not inconsistent with these rules, be deemed to have been respectively done, issued, granted or renewed under these rules.

(2)

The rules contained in Chapters IV and V of the Mysore Gold Mines Rules, 1953, shall continue to apply to gold mines in the State of Mysore in addition to these rules.

First Schedule

Forms Form A

[See rule 48(1)]

Notice of Commencement and end of Work

Name of the Mine.....

Owner.....

It is hereby notified that persons employed at this mine shall begin and end their period of work between the hours set out below.

Sl. No.

Class or kind of employment

Sex

[***]

[Column 4 omitted by G.S.R. 316, dated 14-4-1986 (w.e.f. 16-4-1986)]

Place of work

Set or Relay Number (A,B,C, etc.)

1. Set or RelayA	B	C	D	Etc.
------------------	---	---	---	------

Above ground/Open cast working below ground

2. Shift	1 2 3	1 2 3	1 2 3	1 2 3
----------	-------	-------	-------	-------

1

2

3

[4]

[Columns 5 and 6 renumbered as columns 4 and 5 by G.S.R. 316, dated 14-4-1986 (w.e.f. 16-4-1986)]

[5]

[Columns 5 and 6 renumbered as columns 4 and 5 by G.S.R. 316, dated 14-4-1986 (w.e.f. 16-4-1986)]

Period of work

3. BeginsA.M.

P.M.

Ends*A.M.

P.M.

*Interval for rest, if any

4. Begins*A.M.

P.M.

Ends*A.M.

P.M.

5. System of change of shifts

6. Date on which this notice was first exhibited

Note. - *The words and letters not required shall be scored out.

Signature of Manager

Date.....

[Form B]

[Substituted by G.S.R. 656, dated 5-6-1980 (w.e.f. 1-10-1980)]

[See rules 48(3), 51, 77 and 77-A (2)]

1.

Serial No.

2.

Name and surname of the employee

3.

Father's or Husband's name

4.

Age and sex.

5.

No. and dates of the certificate, if any, held under the Mines Vocational Training Rules,1966.

6.

(a) Designation of the employee.

(b) Nature of employment (whether above or below ground and if above ground whether in open cast working or otherwise.)

(c) Whether employment is permanent or temporary or casual.

7.

Home Address of the employee, giving Village,Thana, Post office and District.

8.

Date of commencement of employment

9.

Date of first appointment, with the present owner.

10.

Date of termination or leaving of employment.

11.

In case of an adolescent, reference to certificate of fitness granted under section 40.

12.

Mark of identification on the body.

13.

Name address, relationship of person to be informed in case of accident/emergency.

14.

Token number and other particulars by which the employee may be identified.

15.

Passport size photograph of the person employed.

{|

Photo

|-

| 16.

| Signature or Thumb impression of the employee.

|

|-

| 17.

| Remarks.

|

|-

|

Signature of Manager]

|}

Form C

(See rules 48(3) and 78)

Register of persons employed below ground during the week commencing.....and ending.....20.....

Name of Mine.....

Part or section of Mine.....

Name of Owner.....

Hours of Shifts

Begins

A.M.P.M.

Ends

A.M.P.M.

Sl.

No.

Name and surname of employee

Age and sex

Class or kind of employment

Relay or Set No.

Serial No. from Form B Register

Time should be recorded against each entry

Total

Remarks

-day

-day

-day

-day

-day

-day

-day

No. of days worked

No. of hours worked

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

In

Out

In

Out

In

Out

In

Out

In

Out

In

Out

In

Out

Initials of Register Keeper

Weekly Abstract

Miners including loaders

[***]

[The word "Adolescents" omitted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986)]

Others

Total No. of attendances

Total No. of absentees

Form D

[See rules 48(3) and 78]

Register Of Persons Employed [above ground]

[Inserted by G.S.R. 1886, dated 14-12-1965.]

in opencast working during the week commencing.....and ending.....20.....

Name of Mine.....

Part or section of Mine.....

Name of Owner.....

Hours of Shifts

Begins

A.M.P.M.

Ends

A.M.P.M.

Sl.

No.

Name and surname of employee

Age and sex

Class or kind of employment

Relay or Set No.

Serial No. from Form B Register

Time should be recorded against each entry

Total

Remarks

-day

-day

-day

-day

-day

-day

-day

No. of days worked

No. of hours worked

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

In

Out

In

Out

In

Out

In

Out

In

Out

In

Out

In

Out

Initials of Register Keeper

Weekly Abstract

Miners including loaders

[***]

[The words "Adolescents" omitted by G.S.R. 316, dated 14-4-1986]

Women

Others

Total No. of attendances

Total No. of absentees

Form E

[See rules 48(3) and 78]

Register of persons employed above ground [otherwise than in opencast working]

[Inserted by G.S.R. 1886, dated 14-12-1965.]

during the week commencing..... and ending.....20.....

Name of Mine.....

Part or section of Mine.....

Name of Owner.....

Hours of Shifts

Begins

A.M.P.M.

Ends

A.M.P.M.

Sl.

No.

Name and surname of employee

Age and sex

Class or kind of employment

Relay or Set No.

Serial No. from Form B Register

Time should be recorded against each entry

Total

Remarks

-day

-day

-day

-day

-day

-day

-day

No. of days worked

No. of hours worked

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

In

Out

In

Out

In

Out

In

Out

In

Out

In

Out

In

Out

Initials of Register Keeper

Weekly Abstract

Miners including loaders

Men

Women

[***]

[The words "Adolescents" omitted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986)]

Total No. of attendances

Total No. of absentees

Form F

[See rule 49(4)]

Register of compensatory days of rest

Name of the Mine.....

Owner.....

Year.....

Dates on which weekly days of rest have not been allowed

Dates on which compensatory days of rest have been allowed

Serial No. from Form B Register

Name and surname of employee

Class or kind of employment with Set or Relay No.

No. of days of compensatory rest due in the previous calendar year

1stJanuary to 31stMarch

1stApril to 30 June

1stJuly to 30thSeptember

1stOctober to 31stDecember

1stJanuary to 31stMarch

1stApril to 30thJune

1stJuly to 30thSeptember

1stOctober to 31stDecember

No. of days of compensatory rest due on 31stDecember

Remarks

1

2

3
4
5
6
7
8
9
10
11
12
13
14
Form G
(See rule 53)
Register of leave account during the calendar year.....
Name of Mine.....
Owner.....
Actual No. of days worked during the year
Leave period due in ensuing year
Sl.s No. from Form B Register
Name and surname of employee
Nature of employment, mention whether above or below ground
Category of employment, mention whether monthly, weekly, daily or piece-rated
Jan.
Feb.
March
April
May
June
July
Aug.
Sept.
Oct.
Nov.
Dec.
Total
Days of leave entitled
Arrears from previous year
Total
Remarks
1
2
3
4
5
6
7
8
9
10
11

12
13
14
15
16
17
18
19
20
21

Form H

(See rule 53)

Register of leave wages account during the calendar year

Name of Mine.....

Owner.....

Leave Installment

Leave Instalment

Leave Instalment

Arrear of Leave

Sl.

No. from Form B Register

Name and surname of employee

Total leave period due in the year (from Form G)

Calculated daily rate of wages of earnings including concessions

Period of leave availed

Calculated wages for the period

Leave wages actually paid

Date of payment

Calculated daily rate of wages or earnings including concessions

Period of leave availed

Calculated leave wages for the period

Leave wages actually paid

Date of payment

Calculated daily rate of wages or earnings including concessions

Period of leave availed

Calculated wages for the period

Leave wages actually paid

Date of payment

Period

Amt.

Remarks

1
2
3
4
5
6
7
8
9
10

11
12
13
14
15
16
17
18
19
20
21

Note. - The date of payment of arrears of leave wages shall be entered in the Remarks column.

[Form I]

[Substituted by G.S.R. 1786, dated 30-9-1970.]

(See rules 59)

Register of overtime wages

Name of Mine.....

Owner.....

Month.....

Week ending

Week ending

Week ending

Serial No. from Form B Register

Name and surname of employee

Nature of work above or below ground

Class or kind of employment

Ordinary rate of wages

Overtime rate of wages

Date on which overtime worked

Number of overtime hours worked on that date

Number of overtime hours in the week

Overtime earnings

Date of payment

Date on which overtime worked

Number of overtime hours worked on that date

Number of overtime hours in the week

Overtime earnings

Date of payment

Date on which overtime worked

Number of overtime hours worked on that date

Number of overtime hours in the week

Overtime earnings

Date of payment

1
2
3
4
5
6
7
8

9
10
11
12
13
14
15
16
17
18
19
20
21
The Total number of hours of overtime work for the month shall be shown in the Remarks column.

Form I - Contd.

(See rule 59)

Register of Overtime Wages

Name of Mine.....

Owner.....

Month.....

Week ending

Week ending

Date on which overtime worked

Number of overtime hours worked on that date

Number of overtime hours in the week

Overtime earnings

Date of payment

Date on which overtime worked

Number of overtime hours worked on that date

Number of overtime hours in the week

Overtime earnings

Date of payment

Remarks

22

23

24

25

26

27

28

29

30

31

32

Form J

[See Rule 76 (1)]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

[Return of Reportable Accidents]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

Name of the Mine.....

Owner.....

State.....District.....

Mineral worked.....[Quarter ending.....]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986)]

Sl.

No.

Date of entry

Date of accident

Time of accident

Classification

Brief description of case of accident

Name of injured worker

Sl.

No. from Register in Form B

Nature of employment

Nature of injury

Parts of body injured

Date of return of injured person to work

Duration of enforced absence (in days)

Initials of attending Medical practitioner

Remarks

By place of accident

By cause

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

Introduction :-

Col. (5) : Specify as indicated in Annexure - I.

Col. (6) : Specify as indicated in Annexure - II.

Col. (7) : Give brief description of the circumstances attending the accident.

Col. (11) : Specify whether simple wound, laceration, abrasion or fracture (only toes, fingers and thumb, etc.)

Col. (14) : Mention the days intervening the days of occurrence and day of rejoining and not including either the date of occurrence or rejoining.

Col. (16) : In case if an injury proves "Serious" or "Fatal" or when injured person proceeds on leave or leaves his employment. Particulars should be entered in this column.

[Note : Copies of entries person injured in preceding quarter(s) and who continued to absent in the quarter should also be submitted separately.]

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

Annexure I

Classification of Accident by Place of Work - (Column 5)

1. Below ground

1.1

Development face

1.2

Other Development area

1.3

Longwall face

1.4

Other Depillaring/stopping area

1.5

Tramming roadway

1.6

Other rope haulage roadways

1.7

Shafts and sinking shaft (including inclined shafts)

1.8

Inclines and Winze

1.9

Other (Specify)

2. Opencast Workings

2.1

Bottom Bench

2.2

Top of the Quarry

2.3

Other benches

2.4

Rope Haulage roadway

2.5

Other Transportation roadways

2.6

Other (Specify)

3. Aboveground (Excluding Opencast Workings)

3.1

Aerial Ropeway -site

3.2

Rope Haulage Roadways

3.3

Other transportation Roadway

3.4

Railway line belonging to the mine

3.5

Site of ore handling plants (including screening plants Dressing Plants, Crushing Plants, etc.

3.6

Workshop, Power-house and other engine rooms

3.7

Depot

3.8

Other (Specify)

Annexure II

Classification of Accidents by Cause - (Column 6)

1. Ground movements

1.1

Fall of roof

1.2

Fall of sides (other than overhang)

1.3

Fall of overhang

1.4

Rock Burst of Bump

1.5

Air Blast

1.6

Premature collapse of workings/pillars

1.7

Subsidence

1.8

Landside

1.9

Collapse of shaft

2. Transportation Machinery (Winding in shaft)

3. Transportation Machinery (other than winding in shaft)

3.1

Aerial Ropeway

3.2

Rope Haulage

3.3

Other Rail Transportation

3.4

Mechanical conveyors

3.5

Other wheeled trackless means of transportation (Trucks, lorries, etc.)

4. Machinery-other than Transportation Machinery

4.1

Drills

4.2

Coal cutting Machinery

4.3

Coal Loading Machinery

4.4

Haulage Engine

4.5

Winding Engine

4.6

Shovels, Draglines, Excavators etc.

4.7

Ore handling Plants (including crushing and screening plants)

4.8

Pumps

4.9

Other (specify)

- 5. Explosive
- 6. Electricity
- 7. Dust, Gas and other combustible material

7.1

Occurrence of gas

7.2

Influx of gas

7.3

Suffocation by gases

7.4

Explosion or ignition of gas/dust etc.

7.5

Outbreak of fire or spontaneous heating

7.6

Others (Specify)

8. Falls (other than falls of ground)

8.1

Falls of persons from heights or into depths

8.2

Falls of persons on the same level

8.3

Falls of objects other than falls of ground

8.4

Other falls (Specify)

9. [Other Cause

9.1

Irruption of water

9.2

Flying pieces

9.3

Extremity caught in between objects

9.4

Unclassified (Specify)].

[Form K]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

[See Rule 76 (2)]

Return Of Minor Accidents

Name of Mine.....

State.....District.....

Owner.....

Mineral worked.....Quarter ending on.....

Classification

Sl.

No.

Date of entry

Date of accident

Time of accident

By place of accident

By cause

Brief description of case of accident

Name of injured worker

1
2
3
4
5
6
7
8

1.
2.
3.
4.
5.
Sl.

No. from Register in Form `B'

Nature of employment

Nature of injury

Part of body injured

Date of return of injured person to work

Initials of attending medical practitioner

Remarks

9

10

11

12

13

14

15

1.
2.
3.
4.
5.

Instructions :-

Col. (5) : Specify as indicated in Annexure - 1 to Form J.

Col. (6) : Specify as indicated in Annexure - II to Form J.

Col. (7) : Give brief description of the circumstances attending the accident.

Col. (11) : Specify whether simple wound laceration abrasion of fracture

Col. (15) : In case if an injury proves "reportable" "Serious" or "Fatal" or when injured person proceeds on leave or leaves his employment, particulars should be entered in this column.

[Form - L]

[Substituted by G.S.R 1786, dated 30-9-1970.]

(See rule 54)

Information Regarding Leave With Wages

Name and surname of employee

Serial No. from Register in Form B

Nature of employment whether below ground or above ground

Actual number of days worked during the preceding year

Days of leave with wages enjoyed during the preceding year

Days of leave to which he is entitled

Arrears of leave carried over from the previous year

Total number of days of leave with wages due

Remarks, if any

1
2
3
4
5
6
7
8
9

Signature

Designation : Owner/agent/manager

Mine:

Owner:

Dated.....

[Form M]

[Substituted by G.S.R. 1786, dated 30-09-1970.]

[See rule 29D(1)]

Notice Of Initial/periodical Medical Examination Under Rule 29-B

No..... Date.....

Sri/Sri mati.....Nature of employment

.....Serial number from B Register* son/daughter or/wife* of, is hereby notified that he/she* should present himself/herself* for an initial/periodical* medical examination, under rule 29-B of the Mines Rules, 1955, before.....(given name of the examining authority) at(give exact description of place) on

* (give date) at.....(give time).

Shri/Shrimati* may note that if he/she* fails, without reasonable cause, to submit himself/herself* for the medical examination aforesaid he/she shall not be eligible for appointment/continuance in employment in the mine from

Shri/Shrimati* may further note that he/she* should bring with him/her* three unattested photographs of himself/herself* and the previous medical certificates in Form O, if any, issued to him/her* under rule 29 F.

Signature of Manager

.....Mine.

*Delete whatever is not applicable.

** Necessary only in case of a person already employed in the mine.

*** In respect of the initial medical examination of a person already employed in a mine and in respect of every periodical medical examination atleast twenty days prior notice is to be given. In respect of the initial medical examination of a person seeking employed at a mine the period of notice may be shorter.

Note. - A copy of the notice shall be sent to the examining authority concerned. In the case of periodical medical examination, the copy of medical certificate in Form O shall also be sent.

Form N

[See rule 29-D(3)]

Second and final notice of initil/periodical* medical examination under rule 29-B

No..... Date.....

Shri/Shrimate*....., Nature of employment**..... Serial number from Form B Register Son/daughter/wife of failed to present himself/herself* for an initial/periodical* medical examination on in respect of which he/she * had been given a notice on

He/She* is hereby again notified that he/she* should present himself/herself* for an initial/periodical* medical examination, under rule 29-B of the Mines Rules, 1955, before.....(give name of the examining authority) at.....(give date) at..... (give time)

Shri/Shrimati* may note that if he/she* fails to submit

himself/herself* for the medical examination aforesaid, he/she* shall not be employed/retained in employment in the mine from.....

Shri/Shrimati*may further note that he/she* should bring with him/her* three unmounted photographs of himself/herself* and he previous medical certificate in Form O, if any, issued to him/her* under rule 29-F.

Signature of Manager

.....Mine.

Form O

(See rule 29-F(2) and 29-L)

Report of medical examination under rule 29-B

(To be issued in triplicate)**

Certificate No.

Certified that Shri/Shrimati* employed as in mine, Form D, No..... has been examined for an initial/periodical* medical examination. He/she* appears to be..... years of age. The findings of the the examining authority are given in the attached sheet. It is considered that Shri/Shrimati*.....

(a)

* is medically fit for any employment in mines.

(b)

* is suffering from.....and is medically unfit for

(i)

any employment in mine; or

(C)

* is suffering from, and should get this disability* cured/controlled and should be again examined within a period of.....months. *He/She will appear for re-examination with the result of test of..... *and the opinion of specialist from He/She* may be permitted/not* permitted to carry on his duties during this period.

(ii)

any employment below ground; or

(iii)

any employment or work.....

Space for affixing passport size photograph of the candidate

Signature of the examining authority

.....

Name and designation in block letters.

Place :

Date :]

*Delete whatever is not applicable.

**One copy of the certificate shall be handed over to the person concerned and another copy shall be sent to the manager of the mine concerned by registered post; and the third copy shall be retained by the examining authority.

Form O-Contd.

Report of the examining authority

(to be filled in for every medical examination whether initial or periodical or reexamination or after cure/control of disability).

Annexure to Certificate No. as result of medical examination on

Identification Mark

Left thumb-impression of the candidate Good/Fair/Poor

1. General development

2. Height.....Cms.

3. Weight.....Kg.

4. Eyes :

(i)

Visual acuity-Distant vision (with or without glasses)

Right eye.....Left eye.....

(ii)

Any organic disease of eyes

*(iii)night blindness

*(iv)Colour blindness

*(v)Squint

(*to be tested in special cases)

5. Ears :

(i)

Hearing Right ear.....Left ear.....

(ii)

Any organic diseases.

6. Respiratory system.

Chest measurement :

(i)

After full inspiration.....cms.

(ii)

After full expiration.....cms.

7. Circulatory system:

Blood Pressure

Pulse

8. Abdomen :

Tenderness

Liver

Spleen

Tumour

9. Nervous system:

History of fits or epilepsy

Paralysis

Mental health

10. Locomotory system

11. Skin

12. Hydrocele

13. Hernia

14. Any other abnormality

15. Urine:

Reaction

Albumin

Sugar

16. Skiagram of chest

17. Any other "C" test considered necessary by the examining authority

18. Any opinion of specialist considered necessary

Place :

Signature of the examining authority

[Form P

[Instituted by G.S.R. 656, dated 5th June, 1980]

(See rule 29-F(1) and 29-L)]

Medical Standard of Fitness for Persons Employed

1. The person should be in good mental and bodily health and free from any physical defect likely to interfere with his efficient employment in a mine.

2. Skeletal nervous system. - The limbs should be well formed and developed, and the function of all the limbs should be within normal limits. Any deformity should be recorded. There should be no deformity or paralysis which may interfere

with his efficient employments in a mine.

3. Skin. - There should be no evidence of extensive and chronic skin disease or ulceration. In case of infective type of skin disease, the candidate could be made fit after he has undergone a treatment. All occupational skin diseases should be noted.

4. (a) Eye vision should be not less than the following standard:-

(1)

Better eye.....6/12

(2)

Worse eye.....6/18

(b)

There should be no night blindness for persons employed below ground and for persons employed in open cast working in shifts other than in mornings shifts.

(c)

A person having only one eye which functions normally should not be employed below ground, For employment on surface the vision of such a person in the other eye should be 6/18 with or without glasses.

5. Hearing should be good. Any progressive disease affecting hearing/or occupational deafness should be recorded.

6. Speech must be without serious impediment. Unless this is also accompanied by generalised partial paralysis this should not be a reason for declaring unfit.

7. (a) Respiratory system should be sound and free from any chronic bronchial or laryngeal disease. This however alone should not be reason to make unfit.

(b)

[A full sized postero-anterior chest radiograph (large enough to include thoracic-inlet and both costophrenic angles) obtained by an X-ray machine of at least 300 mA (Milli-Ampere) strength shall be evaluated in the manner specified by the Chief Inspector and Lung function test (spirometry) to record forced vital capacity (FVC) and forced expiratory volume in on second (EFVI) shall be made. There should not be any evidence of active pulmonary disease.]

[Substituted by G.S.R. 707 (E), dated 21-7-1989.]

If there are evidence of active pulmonary tuberculosis he may be permitted to work if his sputum is negative on repeated examination and on production of a certificate that he is taking treatment from a qualified medical practitioner/Hospital.

8. Circulatory system. - There should be no evidence of any heart or vascular disease which may interfere with his efficient employment in a mine.

9. In case the candidate has hernia he may be declared fit after he has been successfully operated for the same.

10. Hydrocele if present should not be large enough to impede the normal activities of the candidate. In such cases he may be declared fit after being successfully operated.

11. The medical examination should include examination of urine and of other system for evidence of disease. Mere presence of albumen and sugar in the urine without any gross organic disease producing signs and symptoms should not be considered as a disability.

Form P-1

(See rule 29-F(1) and 29-L)

Medical Standard Of Fitness For Persons To Be Employed In Mines

1. The person should be in good mental and bodily health and free from any physical defect likely to interfere with his efficient employment in a mine. Due allowance in the standard should be made for the age of a candidate.

2. Locomotor system. - The limbs should be well formed and developed and the function of all the limbs should be within normal limits. Any deformity should be recorded. There should be no deformity or paralysis which may interfere with his efficient employment in a mine. Any deformity noted should be recorded.

3. Skin. - There should be no evidence of extensive and chronic skin disease or ulceration.

4. (a) Distant vision eye with or without glasses should be not less than the following standard :-

For workers employed on surface and in opencast workings

For workers employed below ground

1. Better eye

6/12

6/6

2. Worse eye

6/18

6/9

(b)

Night blindness should be tested in special cases only in underground workers where the examining authority considers it necessary.

(c)

A person having only one eye which functions normally should not be employed below ground. For employment on surface the vision of such a person in the other eye should be 6/12 with or without glasses. A person will be considered unocular when there is physical loss of one eye or when there is functional loss of vision of one eye.

(d)

Colour blindness will be tested only in special cases where the job requires good colour discrimination. Only low grade colour perceptions will be tested with Edridge Green's lantern.

(e)

There should not be squint where binocular vision is essential.

(f)

There should not be any organic disease of the eye which is likely to affect the distant vision within a period of five years.

5. Hearing should be good. Any progressive disease effecting hearing should be recorded. The candidate should be able to hear conversational voice from a distance of 3 metres.

6. Speech must be without serious impediments.

7. (a) Respiratory system should be sound and free from any chronic laryngeal bronchial pulmonary disease. Tuberculosis of lungs if not active should not be a disqualification.

(b)

[A full sized postero-anterior chest radiograph (large enough to include thoracic inlet and both costophrenic angles) obtained by an X-ray machine of at least 300 mA strength shall be evaluated in the manner specified by the Chief Inspector and Lung function test (spirometry) to record forced vital capacity (FVC) and forced expiratory volume in one second (EFVI)]

[Substituted by G.S.R. 707 (E), dated 21-7-1989.]

should be made and there should not be any evidence of active pulmonary disease.

8. Circulatory system. - There should be no evidence of cardiac or vascular disease which may interfere with his efficient employment in a mine.

9. There should not be any evidence of disease of abdominal organs which is likely to affect his efficient discharge of duty in a mine.

10. In case the candidate has hernia, he may be declared fit after he has been successfully operated for the same.

11. Hydrocele if present should not be large enough to impede the normal activities of the person. If it is large enough he may be declared fit after being successfully operated.

12. The nervous system should be sound. Persons with history of epilepsy or any other type of organic or historical fits should not be declared fit for employment in a mine.

13. The medical examination should include examination of urine. Mere presence of albumen and sugar in the urine without any gross organic disease producing signs and symptoms should not be a disability.

14. Skiagram of the chest should also be obtained. If it is necessary the medical officer may direct the candidate to obtain the result of special tests or/and the opinion of a specialist from recognised institution/hospital.

Form Q

[See rule 29-J(2)(a)]

Notice Of Medical Re-Examination By Appellate Medical Board

No.....

Date.....20.....

Memorandum

SHRI/Shrimati*....., Nature of employment....., serial number from From B Register, son/daughter/wife* of, who has appealed for a re-examination against the findings of a medical examination under

rule 29-B of Mines Rules, 1955 that he/she is unfit for :

(a)

*Any employment in mines.

(b)

*Any employment below, ground.

(c)

Any employment on work.....(Specify in detail) is hereby notified that he/she should present himself/herself* for a medical re-examination by the Appellate Medical Board at.....(give exact description of place) on**.....(give date) at.....(give time).

Shri/Shrimati*.....may note that if he/she* fails, without reasonable cause, to submit himself/herself* for the medical re-examination aforesaid, he/she* shall not be retained in employment in the mine.

Signature of Manager

.....Mine.

Form R

[See rule 29-J(2)(b)]

Second And Final Notice Of Medical Re-Examination By Appellate Medical Board

No.....

Date..... 20.....

Memorandum

Shri/Shrimati*....., Nature of employment, Serial number from Form B Register....., son/daughter/wife* of, failed to present himself/herself* for medical re-examination on in respect of which he/she* had been given a notice on.....

He/She* is hereby again notified that he/she* should present himself/herself* for a medical re-examination by the Appellate Medical Board at (give exact description of place) on**(give date) at (give time).

Shri/Shrimati* may note that if he/she* fails to submit himself/herself* for the medical re-examination aforesaid, he/she* shall not be retained in employment in the mine.

Signature of Manager

.....Mine.

Form S

(See rule 29-L)

Report Of Medical Re-Examination By Appellate Medical Board

*** (To be issued in triplicate)

We do hereby certify that we have examined Shri/Shrimati*, Nature of employment....., Serial Number from Form B Register of mine, who has been declared medically unfit for.

(a)

*any employment in mine.

(b)

*any employment below ground.

(c)

*any employment in work.....(Specify in details)

as a result of a medical examination under rule 29-B. Our Report is given overleaf.

We consider that -

1. He/She* is medically fit for any employment in mine.

2. He/She* is suffering from.....and is medically unfit for

(a)

*any employment in mine, or

(b)

*any employment below ground, or

(c)

*any employment in work.....(Specify in details)

3. He/She is suffering from.....and should get his disability cured/controlled* and should be again examined within a period of months. He will appear for re-examination within a period of..... months. He/She will appear for re-examination within a period of months. He/She will appear for re-examination with the result of test of* and opinion of specialist from He/She may be permitted/not permitted* to carry on his duties during this period.

(Signature of members of Appellate Medical Board

Place :

1.

Date :

2.

3.

Report Of The Appellate Medical Board

Annexure to certificate No. as result of Medical examination on

Identification mark :

Left thumb impression of the candidate Good/Fair/Poor

1. General development:

2. Height.....Cms.

3. Weight.....kg.

4. Eyes:

Distant vision (with or without glasses)

1. General development:

2. Height.....Cms.

3. Weight.....kg.

4. Eyes:

Distant vision (with or without glasses)

(i)

Visual acuity

(ii)

Any organic disease of eyes

*(iii) Night blindness Right eye.....Left eye.....

(iv)

Colour blindness

(v)

Squint

(*to be tested in special cases)

5. Ears :

(i)

Hearing Right ear.....Left ear.....

(ii)

Any organic disease

6. Respiratory system

Chest measurement:

(i)

after full inspiration.....cms.

(ii)

after full expiration.....cms.

7. Circulatory system:

Blood pressure

Pulse

8. Abdomen:

Tenderness

Liver

Spleen

Tumour

9. Nervous system:

History of fits or epilepsy

Paralysis

Mental health

10. Locomotor system

11. Skin

12. Hernia

13. Hydrocele

14. Any other abnormality

Urine:

Reaction

Albumin

Sugar

15. Skiagram of chest

16. Any other test considered necessary by the examining authority

17. Any opinion of specialist considered necessary.

Place :

Signature of the Appellate Medical Board.

Form T

[(See rule 29-P(1)]

Annual Return For The Year Ending On The 31st December

1.

Name of mines

.....

2.

Postal address of Mines

.....

3.

Date of opening

.....

4.

Date of closing (if closed)

.....

5.

Situation of Mine (District/State)

.....

6.

Name of Owner (Postal address of owner)

.....

7.

Number of persons required to be medically examined

.....

8.

Number of persons medically examined

.....

9.

Number of persons declared medically unfit

.....

10.

Categorisation of the persons declared unfit

.....

Signature

Designation

Date]

[Form U]

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986)]

(See rule 29-R and 29-S)

Name of

Mine Owner

.....

Manager Place/Installation

inspected

Inspected by on

.....

Accompanied by

.....

.....

Observations

Remedial measures suggested

Action taken for remedial measures

Date on which action taken

Remarks, if any

Signature of Workmen's Inspector with date.

Signature of Manager with date.

Signature of mine official accompanying the workmen's inspector.

Signature of Manager with date.

Date :

Designation]

Second Schedule

[See rule 43 (3)]

Equipment Of [A First-Aid Room]

[Substituted by G.S.R. 239, dated 3-2-1965.]

(a)

A stretcher and a table of convenient height [0.75 metres]

[Substituted by G.S.R. 31, dated 29-12-1960.]

large enough to place the stretcher on;

(b)

a bench or chairs, and one screen;

(c)

a glazed sink, with water readily available;

(d)

Soap, towel and nail brush;

(e)

a supply of suitable sterilized dressings, cotton, wool, bandages and adhesive plaster.

(f)

a supply a tincture of iodine (2 per cent alcoholic solution) or other antiseptic solution ;

(g)

blankets and hot-water bottles;

(h)

Sets of splints [1.40 metre, 0.90 metre and 0.3 metre with necessary triangular bandages for applying them;

[Substituted by G.S.R. 31, dated 29-12-1960.]

- (i)
a supply of drinking water and a drinking vessel;
- (j)
a tourniquet, scissors and safety pins.
- (k)
a pair of artery forceps,
- (l)
one eye bath
- (m)
two clinical thermometers;
- (n)
one record syringe (5 c.c)
- (o)
an adequate supply of anti-tetanus serum and morphine ampules;
- (p)
first-aid boxes or cupboards not less than one for every 150 persons employed in the mine marked with requisites specified in the Third Schedule ; and
- (q)
Stove or other apparatus for boiling water.

Third Schedule

[See rule 44(1)]

Requisites Of A First-Aid Station

- (a)
a stretcher with two blankets;
- (b)
sets of splints [1.40 metres, 0.90 metres and 0.3 metre]
[Substituted by G.S.R. 31, dated 29-12-1960.]
, with necessary triangular bandages for applying them;
- (c)
first-aid boxes or cupboards not less than one for every 150 persons employed, containing at least -
 - (i)
a sufficient supply of large and small sterilized dressing and burn dressings;
 - (ii)
a sufficient supply of sterilized cotton-wool and of adhesive plaster;
 - (iii)
a supply of roller bandages;
 - (iv)
a supply of tincture of iodine or other antiseptic solution;
 - (v)
a tourniquet, scissors and safety pins; and
 - (vi)
a piece of carbolic soap.

Note. - Each first-aid box or cupboard shall be distinctly marked with the sign of Red Cross and with the words "FIRST-AID", and nothing except appliances or requisites for first aid shall be kept in it.

Fourth Schedule

(See rule 50)

Exemption From Hours And Limitations Of Employment

Nature of work

Extent of exemption

Conditions attached to exemption.

- (1)
- (2)
- (3)

1. Emergency involving serious risk to the safety of the mine or of person employed therein such as accidental explosion, ignition of gas, spontaneous heating, outbreak of fire, influx of noxious gases, irruption of water, premature collapse of any part of a mine or failure of power supply

Sections 28, 30, 31, 34 and 36(5)

1. No person shall be employed on such work for more than 12 hours on any one day and 66 hours during each period of seven consecutive days commencing from his first employment on such work.

(2) The report referred to in sub-section(2) of section 38 shall be sent to the Chief Inspector on or before the last day of each month.

[2]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

(a) Urgent work in case of -

(i) an accident actual or apprehended in a mine involving work, such as clearing of falls of ground or erecting or withdrawing of support or completion of blasting operations; or

Section 28, 30, 31, 34 and 36(5)

(1) No person shall be employed beyond the limits of overtime specified in section 35.

(2) The report referred to in sub-section(2) of section 38 shall be sent to the Chief Inspector on or before the last day of each month.

(ii) a breakdown of any machinery, plant or equipment in a mine involving repairs renewals or alteration necessary to avoid stoppage of normal mining operations.

(b) work of a preparatory or complementary nature such as repairs of shafts and roadways or of haulage track; arranging for ventilation; fitting or shifting of pump, which must necessarily be carried on for the purpose of avoiding serious interference with the ordinary working of the mine.

(3) Operation of continuously operated machinery including winding engines for hoisting and lowering of men.

Section 28, 30, 31, 34 and 36(5)

(1) Applicable only when the person succeeding him fails to report for duty without prior notice, so as to enable him to work the whole or part of the subsequent shift.

(2) The report referred to in sub-section (2) of section 38 shall be sent to the Chief Inspector on or before the last day of each month.

Fifth Schedule

[See rule 79(1)]

Abstracts Of The Act

Inspectors

1. Any Inspector may enter and inspect any mine (by day and night) and make such examination and enquiry as may be necessary to determine the condition of the mine and to ascertain whether the provisions of this act and of the Regulation, Rules, and Bye-laws are being observed. If he has reason to believe that these provisions have been or are being contravened, he may search any place and take possession [of any material plan, section register or other record]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

concerning the mine (Section 7).

2. Any Government, duty authorised by the Chief Inspector or an Inspector may enter any mine for the purpose of surveying, levelling and measuring after giving at least 3 days notice to the manager (Section 8).

3. Every owner, agent and manager of a mine shall afford every Inspector and every person authorised under section 8 all reasonable facilities for making an entry, inspection, survey, measurement, examination or enquiry under this Act.(Section 9).

[3-A. The Chief Inspector or an Inspector or an Officer authorised by him may undertake safety and occupational health survey in mines. The time spent by any person chosen for examination in such survey shall be counted towards his working time, so however that any overtime shall be paid on ordinary rate of wages. If such person is found medically unfit on such survey he shall be entitled to medical treatment at the cost of the owner, agent or manager with full wages, during the period of such treatment. If after such treatment he is declared medically unfit to discharge his duty, and if

such unfitness is directly ascribable to his employment he shall be entitled for an alternative employment or a disability allowance and in case he desires to leave the employment for payment of a lump sum compensation (Section 9A)].

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

Management of Mines

4. Every mine shall be under the control, management [supervision]

[Inserted by G.S.R. 1886, dated 14-12-1965]

and direction of one manager having the prescribed qualifications (Section 17).

5. The owner, agent and manager of every mine shall be responsible that all operations carried on in connection with the mine are conducted in accordance with the provisions of this Act and of the Regulations, Rules, Bye-laws and any order made there under (Section 18).

[For any contravention of the provisions of this Act and of or off the Regulations, Rules, Bye-laws or orders made there under, the person who contravenes, the concerned supervisor the owner, the agent and the manager of the mines and in matters of canteen, crèche or pithead bath, the person appointed, if any under sub-section(2) of section 18 shall be deemed to be guilty.]

[Inserted by G.S.R. 1886, dated 14-12-1965.]

Provision of drinking water, ambulance appliances and latrines

6. In every mine, both above and below ground -

(a)

A sufficient supply of cool and wholesome drinking waster shall be provided and maintained at suitable points conveniently situated for all persons employed in the mine (Section 19)

(b)

A sufficient number of first-aid boxes shall be provided and maintained. (Section 21)

(c)

A sufficient number or latrines and urinals, separately for males and females, shall be provided in every mine at suitable places accessible at all times to all persons employed in the mine. All latrines and urinals shall be maintained in a clean and sanitary condition. (Section 20).

[Accidents and Propitiatory Orders]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

7. Where there occurs in or about a mine an accident causing loss of life or serious bodily injury on any dangerous occurrence, a notice in the prescribed form shall be sent to the prescribed authorities and simultaneously a copy of such notice shall be posted at the mine on a special notice board and kept posted for [not less than fourteen days]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

from the date of such posting. (Section 23).

[Except for preventing further accidents or for saving life or for recovering dead bodies, the place of accident shall not be disturbed or altered before the arrival or without the consent of the Chief Inspector or an Inspector or before the expiry of 72 hours there from whichever is the earliest, unless discontinuance of work at the place of accident would seriously impede the workings of the mine.]

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

8. Where any person employed in a mien contacts and disease connected with mining operations the owner, agent or manager shall send notice thereof to the Chief Inspector and to such other authorities as may be prescribed (Section 25)

[8-A. Every person whose employment is prohibited under sub-section (1-A) or sub-section (3) of section 22 or under sub-section (2) of section 22A of the Act, shall be paid the full wages for the relevant period or provided with alternative employment (Sections 22 and 22-A)]

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

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Hours and Limitation of Employment

9. No person shall work in a mine on more than six days in any one week (Section 28.)

10. If any person works, as provided under this Act, on any day of rest fixed for him, he should be given a compensatory day of rest within that of the following two months. (Section 29.)

11. No adult shall woek above ground in a mine for more than forty-eight hours in any week or [normally]

[Inserted by G.S.R. 1886, dated 14-12-1965.]

for more than nine hours in any day and he shall have at least half an hour's rest after working for not more than five hours. The spread-over of the period of work including rest interval shall not normally be more than 12 hours [Consecutive shifts for the same type of workers employed above ground shall not overlap]

[Inserted by G.S.R. 1886, dated 14-12-1965.]

(Section 30).

12. No adult shall work below ground in a mine for more than forty eight hours in any week or [normally]

[Inserted by G.S.R. 1886, dated 14-12-1965.]

for more than eight hours in any day, [***]

[Omitted by G.S.R. 1886, dated 14-12-1965.]

(Section 31).

13. [Where in a mine a person works aboveground for more than nine hours or works below ground for more than eight hours on any day, or works for more than forty eight hours in any week, whether above ground or below ground, he shall get for such overtime work, wages at the rate of twice his ordinary rate of wages.]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

["Ordinary rate of wages" means the basic wages plus any dearness allowance, underground allowance, incentive bonus (but not ordinary bonus), compensation in cash against free supply of food grains and edible oils (but not against free housing, free supply of coal, kerosene oil, tools and uniforms medical and educational facilities, sickness allowance) and in case of a person paid on piece-rate basis, the average of his full time earnings (exclusive of any overtime) during the preceding week.]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

14. No person shall be allowed to work in a mine who has already been working in any other mine within the preceding 12 hours. (Section 34).

15. [Except as may be permitted under clause (a) and (3) of section 39, no person employed in a mine shall be required or allowed to work for more than ten hours in any day inclusive of overtime. (Section 35).]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

16. The manager of very mine shall post outside the office a notice of working hours, and no person shall be allowed to work otherwise than in accordance with the notice (Section 36).

17. The provisions regarding weekly day of rest, hours of work above and belowground and of section 36 shall not apply to supervising staff (Section 37).

18. In case of an emergency, the manager may permit in accordance with the rules made under section 39, persons to be employed in contravention of the provisions regarding hours of work (Section 38).

Employment of adolescents

19. [A person below 18 years of age shall not work in any part of a mine unless he is an apprentice or a trainee in which case he may be below 18 years but not below 16 years of age (Section 40).

20. Where an Inspector is of opinion that any person employed in a mine otherwise than an apprentice or other trainee is not an adult or that any person employed in a mine as an apprentice or other trainee is either below sixteen years of age or is no longer fit to work, the Inspector may serve on the manager of the mine a notice requiring that such person shall be examined by a certifying surgeon and such person shall not, if the Inspector so directs, be employed or permitted to work in any mine until he has been so examined and has been so examined and has been certified that he is an adult or, if such person is an apprentice or trainee, that he is not below sixteen years of age and is fit to work. (Section 43).]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

[***]

[Cls. 21 to 24 omitted by G.S.R. 316, dated 14-4-1986 (w.e.f. 14-4-1986).]

25. [(1) No women shall be employed in any part of a mine which is below ground.

(2)

No women shall be employed in any mine above ground except between the hours of 6 AM and 7 P.M.

(3)

Every woman employed in a mine above ground shall be allowed an interval of not less than eleven hours between the termination of employment on any one day and the commencement of the next period of employment. (Section 46).]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

Registration of workers

[26(1) For every mine there shall be kept a register of employees showing in respect of each person, his or her name with the name of his father or of her husband as the case may be, age, sex, nature of employment date of commencement of employment, [***]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

. The entries in the register shall be authenticated by the signature or thumb impression of the person concerned.

(2)

There shall also be kept separate attendance registers for employees working -

(a)

below ground;

(b)

above ground in opencast workings; and

(c)

above ground in other cases;

Showing in respect of each person the name, class or kind of his employment and the ours of shift and the shift to which he belongs. The register of persons employed below ground shall show at any moment the name of every person who is then present below ground in the mine.

(3)

No unauthorised person shall enter any opencast working or any working below ground (Section 48).]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

[Substituted by G.S.R. 1786, dated 30.9.1970.]

Leave with wages

27. []

[Substituted by G.S.R. 1886, dated 14-12-1965.]

(1) Every person employed in a mine who has completed a calendar year's service therein shall be allowed, during the subsequent calendar year, leave with wages calculated -

(a)

in the case of a person employed below ground, at rate of one dya for every [fifteen days]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

of work performed by him; and,

(b)

in any other case, at the rate of one day for every twenty days of work performed by him.

(2)

A calendar year's service referred to in sub-clause (1) shall be deemed to have been completed -

(a)

in the case of a person employed below ground in a mine, if he has during the calendar year put in not less than one hundred and ninety attendances at the mine; and

(b)

in case of any other person, it he has during the calendar year put in not less than two hundred and forty attendances at the mine.

Explanation. - For the purpose of this sub-clause -

(a)

any days of lay-off by agreement or contract or as permissible under the standing order ;

(b)

in the case of a female employee, maternity leave for any number of days not exceeding twelve weeks, and

(c)

the leave earned in the year prior to that in which the leave is enjoyed;

shall be deemed to be days on which the employee has worked in a mine for the purpose of computation of the attendance, but he shall not earn leave for these days.

(3)

A person whose service commences otherwise than on the first day of January shall be entitled to leave with wages in the subsequent calendar year at the rates specified in clause (1), if -

(a)

in the case of a person employed below ground in a mine, he has put in attendances for not less than one-half of the total number of days during the remainder of the calendar year; and

(b)

in any other case, he has put in attendances for not less than two thirds of the total number of days during the remainder of the calendar year.

(4)

Any leave not taken by a person to which he is entitled in any one calendar year under sub-clause (1) or sub-clause (3) shall be added to the leave to be allowed to him under sub-clause (1) during the succeeding calendar year :

Provided that the total number of days of leave which may be accumulated by any such person shall not at any one time exceed thirty days in all :

Provided further that any such person who has applied for leave with wages but has not been given such leave in accordance with sub-clause (6), shall be entitled to carry forward the unexpired leave without any limit.

(5)

Any such person may apply in writing to the manager of the mine not less than fifteen days before the day on which he wishes his leave to begin, for all leave or any portion thereof then allowable to him under sub-clause (1), (3) and (4):

Provided that the number of times in which leave may be taken during any one calendar year shall not exceed three.

(6)

An application for such leave made in accordance with sub-clause (5) shall not be refused unless the authority empowered to grant the leave is of opinion that owing to the exigencies of the situation the leave should be refused.

(7)

If a person employed in a mine wants to avail himself of the leave with wages due to him to cover a period of illness. He shall be granted such leave even if the application is not made within the time specified in sub-clause (5).

(8)

If the employment of a person employed in a mine is terminated by the owner, agent or manager of the mine before he has taken the entire leave to which he is entitled up to the day of termination of his employment, or if such person having applied for and having not been granted such leave, quits his employment before he has taken the leave, the owner, agent or manager of the mine shall pay him the amount payable under clause 28, in respect of the leave not taken, and such payment shall be made where the employment of the person is terminated by the owner agent or manager before the expiry of the second working day after such termination and where a person himself quits his employment on or before the next pay day.

(9)

The unexpired leave of a person employed in a mine shall not be taken into consideration in computing the period of any notice required to be given before the termination of his employment.

(10)

[If a person employed in a mine is discharged or dismissed or quits his employment or is superannuated or dies while in service, he or his heirs or his nominees is entitled to wages in lieu of leave due, if he has put in the minimum number of attendances prescribed in sub-section 52 of the Act.]

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

Explanation. - For the purpose of sub-clause [(1) (3) and 10) any fraction of leave of half a day or more shall be treated as one full day and fraction of less than half a day shall be omitted (Section 52)].

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

28. [For the leave allowed to a person, he shall be paid at a rate equal to the daily average of his total full-time earnings during the month immediately preceding his leave, exclusive of overtime wages and bonus, but inclusive of any dearness allowance and compensation in cash including such compensation, if any, accruing through the free issue of food grains, and other articles as persons employed in the mine may, for the time being be entitled to. If figures for his average earnings are not available, the average shall be computed on the basis of the daily average of the total full time earnings of all persons similarly employed for that month. (Section 53).

29. Any person who has been allowed leave for not less than four days shall be paid wages due for the period of leave

allowed before his leave beings. (Section 54).]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

Penalties

30. Any person obstructing an Inspector in the execution of his duties may be punished with imprisonment up to three months or fine up to Rs. 500 or both (Section 63.)

31. Whoever makes, give or delivers any plan return, notice record or report containing a statement, entry or detail which is not to the best of his knowledge or belief true may be punished with imprisonment up to three months or a fine up to [Rs.1,000]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

or both (Section 64).

32. Whoever knowingly uses for himself a certificate of fitness granted [under section 43]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

to some other person or allows a certificate of fitness granted to him to be used by any other person, may be punished with imprisonment up to one month or a fine up to [Rs. 200]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

; or both (Section 65).

[33 if any person below 18 years of age is employed in a mine except as an apprentice or trainee, the owner, agent or manager of such mine shall be punishable with a fine up to Rs. 500/- (Section 68).]

[Substituted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

34. If any mine is run without a manager the owner or agent may be punished with imprisonment up to three months or with a fine up to [Rs. 2500]

[Substituted by G.S.R. 1886, dated 14-12-1965.]

; or both. (Section 69).

35. Whoever fails to give notice of any accidental occurrence or to post a copy of the notice on a special notice board, may be punished with imprisonment up to three months or a fine up to Rs. 500 or both (Section 70).

36. No person shall interfere with, misuse or wilful neglect to make use of any appliance provided for the purpose of health, safety of welfare of the workers or wilfully do any thing likely to endanger himself or others. (Section 2).

37. []

[Rule 37 renumbered by G.S.R. 1886, dated 14-12-1965.]

Whoever contravenes any provision of any regulation or bye-law or of any order made there under relating to matters specified in clauses (d), (i), (m), (n), (o), (p), (r), (s), and (u) of section 57 shall be punished with imprisonment which may extend to Rs. 2,000 or with both. (Section 72-A).

38. Whoever contravenes any order issued under sub-section (1A), or subsection (2) or sub-section (3) of section 22 ["or under sub-section (2) of section 22-A"]

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

shall be punished with imprisonment up to two years and fine up to Rs. 5,000 (Section 72-B).

39. Whoever contravenes any provision of the Act or of any regulation rule or bye-law or of any order made thereunder (other than an order made under sub-section (1-A) or sub-section (2) or sub-section (3) of section 22) [or, under sub-section (2) of section 22-A]

[Inserted by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

shall be punishable -

(a)

If such contravention results in loss of life, with imprisonment which may extent to two years, or with fine which may extend to Rs. 5,000 or with both; or

(b)

If such contravention results in serious bodily injury, with imprisonment which may extend to one year, or with fine which may extend to Rs. 3,000 or with both; or

(c)

If such contravention otherwise causes injury or danger to persons employed in the mine or others persons in or about the mine, with imprisonment which may extend to three months or with fine which may extend to Rs. 1,000 or with both (Section 72-C).

40. []

[Rule 40 renumbered by G.S.R. 1886, dated 14-12-1965.]

Whoever contravenes any provision of this Act or of any regulation rule or bye-law or of any order made there under, for which no penalty is expressly provided may be punished with imprisonment up to three months, or a fine up to Rs. 1,000 or both (Section 73).

41. [If any person who has been convicted for any offence other than an offence mentioned in clause 38 or 39 is again convicted for the same offence within two years of the previous conviction, he shall be punished, for each subsequent conviction, with double the punishment to which he would have been liable for the first contravention of such provisions. (Section 74.)]

[Inserted by G.S.R. 1886, dated 14-12-1965.]

42. [No fee or charge shall be realised from any person employed in a mine in respect of any protective arrangements or facilities to be provided or any equipment or appliance to be supplied under the Act. (Section 85-C)].

[Added by G.S.R. 316, dated 14-4-1986 (w.e.f. 26-4-1986).]

Sixth Schedule

(See rule 80)

1

2

[All mines]

[Substituted by G.S.R. 1786, dated 30-09-1970.]

situated in the District of Lakhimpur in the State of Assam

One hour in advance of Indian Standard Time

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